

Intermodal Motor Carriers Conference, et al.

v.

Ocean Carrier Equipment Management Association, Inc., et al.

FMC Docket No. 20-14

Respondents' Response to IMCC's Statement of Material Facts

Public - Unrestricted

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO.
011982, HAPAG-LLOYD AG, HMM CO.
LTD., MAERSK A/S, MSC MEDITERRANEAN
SHIPPING COMPANY S.A., OCEAN NETWORK
EXPRESS PTE. LTD., WAN HAI LINES LTD., YANG
MING MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

RESPONSE TO IMCC’S STATEMENT OF UNDISPUTED MATERIAL FACTS

OBJECTIONS

A. Respondents object to and have denied those statements in IMCC’s Statement of Undisputed Material Facts (“SUMF”) which violate the directive set forth in paragraph 15 of the Initial Order entered by ALJ Erin M. Wirth on July 30, 2020 (“Initial Order”), which requires “This document (statement of material facts) must set forth in separately numbered paragraphs a concise statement of each material fact as to which the movant contends there is no genuine dispute.” (emphasis supplied) Respondents object to statements which contain multiple statements, and combine multiple assertions, partial quotations from deposition testimony and excerpts from exhibits and other documents in violation of this directive because they have impeded Respondents’ ability to prepare concise and accurate responses. When possible,

Respondents have attempted to respond, in good faith, to the statements which violate this directive; otherwise, these improper statements have been denied. Respondents reserve the right to supplement these responses to the extent necessary to avoid having been deemed to admit statements which have been improperly advanced by IMCC in a form that violates the Initial Order.

B. Respondents object to statements which contain or refer to facts which are not material or relevant and have denied same.

C. Respondents object to statements which relate to efficiency because such statements are not material: “Complainant’s focus on efficiency may also be misplaced. While the Commission may have an interest in efficiency, it will be Complainant’s obligation to establish that the regulations and practices are unreasonable, not Respondents’ obligation to establish that the practices are the most efficient.” Order Denying Respondents’ Motion for Leave to File Interlocutory Appeal, at p. 6 (“Order at p. 6”) Respondents have accordingly denied these assertions when they have been improperly propounded by IMCC herein as statements of fact.

D. Respondents object to statements which are conclusory or argumentative, and have denied same.

E. Respondents object to the headings embedded in the IMCC’s SUMF because their inclusion is not contemplated by paragraph 15 of the Initial Order and because they contain assertions which are conclusory and argumentative. The IMCC headings are denied as a whole as not proposed findings of fact, and they are not objected to individually nor are the headings restated herein.

F. Respondents object to IMCC’s characterization of non-party hearsay statements, and inadmissible opinions and conclusory statements from non-parties as “facts” in its SUMF, and Respondents have denied same.

G. Respondents object to IMCC’s characterization of documents and testimony that speak for themselves, and Respondents have denied same.

RESPONSES

Without prejudice to the foregoing objections, Respondents submit the following responses to the IMCC’s Statement of Undisputed Material Facts (“SUMF”) in opposition to IMCC’s Motion, reserving their right to supplement these responses as necessary.

1. IMCC hereby incorporates the Joint Stipulation of Facts in full. *See* Dkt. 87, 88.

RESPONSE: To the extent the Joint Stipulations of Fact are material to IMCC’s Motion, they are admitted. To the extent the Joint Stipulations of Fact refer to information that is not material or relevant to IMCC’s Motion, they are denied.

2. IMCC members have suffered harm as the result of Respondents’ conduct.

RESPONSE: Denied. This SUMF is argumentative and conclusory and does not contain a concise statement of material fact. Without prejudice, Respondents summarize below some of the substantial evidence confirming that IMCC members have not been harmed:

- Allegations that IMCC members sustained \$1.8 billion in damages has been shown to be demonstrably false. The flaws in the methodology by which this damages claim has been calculated have been set forth in detail in [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Briefly, the flaws in the damages calculation include:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Further evidence showing that IMCC members actually profit from the assessment of chassis use charges is set forth below.

- [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

- [REDACTED]

[REDACTED]

[REDACTED]

- [REDACTED]

[REDACTED]

[REDACTED]

¹ “APP” refers to documents in the Appendix filed by Respondents in support of their Motion for Summary Judgment.

- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]

3. At least one IMCC member paid invoices to the designated IEP participating in the Pool-of-Pools in Los Angeles/Long Beach to transport containers of each of the Respondents.

See CX00004463 [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. CX00004463 is an excel document containing 122,008 container movements and it is burdensome and unreasonable for IMCC to require Respondents to search

through such a large volume of data for the eleven entries set forth in this SUMF. Further, an allegation of violation under Section 41102(c) requires the demonstration of a pattern of unlawful conduct and a single instance herein alleged for each ocean carrier Respondent does not constitute a pattern of conduct for a Section 41102(c) violation. Further reasons for Respondents denial are set forth below:

- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

■ [REDACTED]

[REDACTED]

■ [REDACTED]

■ [REDACTED]

■ [REDACTED]

■ [REDACTED]

4. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Chicago region. See CX00002764 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. CX00002764 is an excel document containing 144,515 container movements and it is burdensome and unreasonable for IMCC to require Respondents to search through such a large volume of data for the nine entries set forth in this SUMF and for the single entry involving Evergreen in CX00002770. Further, an allegation of violation under Section 41102(c) requires the demonstration of a pattern of unlawful conduct and a single instance herein alleged for each ocean carrier Respondent does not constitute a pattern of conduct for a Section 41102(c) violation. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Further reasons for

Respondents' denial are set forth below:

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

•

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

■

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

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I [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

I [REDACTED]

[REDACTED]

[REDACTED]

5. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Memphis region. See CX00002764 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. CX00004463 is an excel document containing 144,515 container movements and it is burdensome and unreasonable for IMCC to require Respondents to search through such a large volume of data for the ten entries set forth in this SUMF. Further, an allegation of violation under Section 41102(c) requires the demonstration of a pattern of unlawful conduct and a single instance herein alleged for each ocean carrier Respondent does not constitute a pattern of conduct for a Section 41102(c) violation. In addition, [REDACTED]

[REDACTED]

Further reasons for Respondents denial are set forth below:

- [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

6. At least one IMCC member paid invoices to TRAC, DCLI, or Flexi-Van, or NACPC with respect to the transport of containers of each of the Respondents (other than Wan Hai) in to and from terminals in the Savannah region. See CX00002764 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. CX00004463 is an excel document containing 144,515 container movements and it is burdensome and unreasonable for IMCC to require Respondents to search through such a large volume of data for the eight entries set forth in this SUMF. An allegation of violation under Section 41102(c) requires the demonstration of a pattern of unlawful conduct and a single instance herein alleged for each ocean carrier Respondent does not constitute a pattern of conduct for a Section 41102(c) violation. In addition, [REDACTED]

[REDACTED]

for Respondents denial are set forth below:

- [REDACTED]

████████████████████

114

[REDACTED]

[REDACTED]

1 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

1 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

1 [REDACTED]

[REDACTED]

[REDACTED]

1 [REDACTED]

[REDACTED]

7. At least one IMCC member has [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. The referenced testimony contains general assertions regarding the efficiency of chassis operations in Chicago that are not material. (Order, at p. 6)

8. At least one IMCC member has [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. The referenced testimony contains general assertions regarding the efficiency of chassis operations in Memphis which are not material. (Order, at p. 6)

9. Containers used in the international movement of cargo are standardized under standards published by the International Standards Organization. The most common container sizes are 20-foot, 40-foot and 40-foot “high cube.” Because they are standardized, ISO-compliant containers can be handled by ports and inland terminals equipped to handle such containers, as well as providers of rail, barge, and road transportation. Rodrigue Initial Expert Report, CX00001362 at ¶ 16, CX00001522-23.

RESPONSE: Admitted.

10. Chassis are used in “receiving, handling, storing or delivering property,” 46 U.S.C. § 41102(c), that is, the cargo in the ocean containers that are mounted on them.

RESPONSE: Denied. This SUMF is argumentative and conclusory statement regarding subject matter jurisdiction, which has been contested as a matter of law. (See, Respondents’ Motion for Summary Judgment, Point IV; Respondents’ Memorandum of Law in Opposition to Complainant’s Motion for Summary Decision, Point II A)

11. A chassis used by motor carriers to move containers between intermodal terminals and shipping facilities “is a frame with a suspension and axle system, wheels and tires,

brakes, a lighting and electrical system, a coupling for towing behind a truck tractor, and twistlocks that provide the securement points to the corner castings on a container. Newly constructed and remanufactured chassis often have high-tech components such as asset tracking, or GPS, weight sensors and automatic tire inflation systems.” “Intermodal Factbook: An Introduction to Intermodal Freight Transportation,” CX00003961 at 976.

RESPONSE: Admitted.

12. Like containers, chassis are designed to be interoperable and to carry ISO-standard containers, though some may be limited to specific chassis lengths, such as 20 or 40-foot containers. Rodrigue Initial Expert Report, CX00001362 at ¶ 16.

RESPONSE: Denied. This SUMF does not contain facts which are material (Order, at p. 6) and furthermore the assertion herein that chassis are designed to be interoperable is conclusory.

13. Some chassis may be expandable to handle additional container sizes, including 53-foot domestic containers or specialty sizes, such as tri-axle containers. *Id.*

RESPONSE: Denied. This SUMF does not contain facts which are material. (Order, at p. 6)

14. Tri-axle containers are used to move heavy containers (often 20-foot) where state axle-load-limit regulations would otherwise prevent such heavy containers from being moved on public roads. Fehribach (CPG) Dep., CX00000329 at 43:19-25.

RESPONSE: Denied. This SUMF does not contain facts which are material. (Order, at p. 6)

15. The business models for provisioning chassis in the U.S. are unique. In other markets, motor carriers or logistics providers are responsible for the provision of chassis, with ocean carriers having no direct role in chassis provisioning. The evolution of the business models for the provision of chassis for the movement of marine cargo containers in the United States is an outgrowth of the historical circumstances in which cargo containers were first introduced in

the United States and the business model for chassis provision reflect the nature of that introduction. *See* Coates Initial Expert Report, CX00001524 at 530-33.

RESPONSE: Admitted.

16. When containerization first emerged in the United States in the 1950s and early 1960s, its key driver/initiator was SeaLand, a container ocean carrier founded by Malcolm McLean. His original idea was to load chassis and containers/trailers onto the ship, but this idea turned out to be impractical. The use of containers without chassis or wheels proved to be more efficient, leading to a separation between containers and chassis operations that has remained since. As McLean had a trucking background, he considered the inland (truck) leg of containerization very important to the overall transport process. Therefore, strategic decisions made by SeaLand were aimed at supporting truck operations as part of intermodalism. Rodrigue Initial Expert Report, CX00001362 at ¶ 23; *see also* Coates Initial Expert Report, CX00001524 at 530.

RESPONSE: Admitted.

17. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 24.

RESPONSE: Admitted.

18. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 25.

RESPONSE: Admitted

19. SeaLand was purchased by CSX in 1986, which brought a railroad's intermodal perspective to the supply of chassis. Similarly, APL was a major innovator concerning the integration of rail into the intermodal system. It introduced the first intermodal trains in the late 1970s, with full container trains between Los Angeles and New York. Rodrigue Initial Expert Report, CX00001362 at ¶ 26; *see also* CX00001778, *History of APL Limited*, FUNDINGUNIVERSE, <http://www.fundinguniverse.com/company-histories/apl-limited-history/> (last visited Feb. 28, 2022); CX00006151, *APL Highlights Significant Contributions to Containerization*, SEAPORTS PRESS REVIEW (Apr. 6, 2006), https://web.archive.org/web/20061229100504/http://www.seaportspr.com/viewtechnews.cgi?newsletter_id=49&article_id=2200.

RESPONSE: Admitted.

20. Beginning in the 1990s, several mergers and alliances started to take place in the

shipping industry, which complicated chassis operations. Once an alliance was established, chassis pools needed to be reorganized to reflect the new partnership structure. The outcome of this consolidation was the establishment of co-op pools, or “alliance pools” by ocean carriers. These pools were an attempt to coordinate and make fully interoperable the regional chassis assets of IEPs. Rodrigue Initial Expert Report, CX00001362 at ¶ 27; *see also* CX00001783 at 822, CPCS Transcom, InterPro Advisory, Prime Focus, and Jean-Paul Rodrigue (2012), Guidebook for Assessing Evolving International Container Chassis Supply Models; CX00001966 at 968-69, 977, U.S. Government Accountability Office (“GAO”) (2021), Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role.

RESPONSE: Admitted.

21. [REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 28; *see also* CX00002436 (Wilson Dep. Ex 9) at 437.

RESPONSE: Admitted.

22. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002436 (Wilson Dep. Ex 9) at 437.

RESPONSE: Admitted.

23. CCM had six pool LLC subsidiaries. These subsidiaries and the port and inland terminal metropolitan areas that they served include: (1) Chicago & Ohio Valley Consolidated Chassis Pool LLC (Chicago, IL; Cleveland, OH; Cincinnati, OH; Columbus, OH; Detroit, OH; Indianapolis, IN; Louisville, KY); (2) Denver Consolidated Chassis Pool LLC (Denver, CO; Salt Lake City, UT); (3) Gulf Consolidated Chassis Pool LLC (Houston, TX; Dallas, TX; New Orleans, LA; El Paso, TX; Fort Worth, TX; San Antonio, TX); (4) Mid-South Consolidated Chassis Pool LLC (Memphis, TN; Nashville, TN); (5) Mid-West Consolidated Chassis Pool LLC (St. Louis, MO; Kansas City, KS; Omaha, NE); and (6) South Atlantic Chassis Pool LLC (Atlanta, GA; Charleston, SC; Charlotte, NC; Jacksonville, FL; Savannah, GA; Tampa, FL). Joint Stipulations at ¶ 200.

RESPONSE: Admitted.

24. On August 19, 2020, GCCP formally closed, and GCCP's contracts with chassis contributors and users terminated as of that date. Joint Stipulations at ¶ 202.

RESPONSE: Admitted.

25. On August 19, 2020, the COCP formally closed and COCP's contracts with chassis contributors and users terminated as of that date. Joint Stipulations at ¶ 204.

RESPONSE: Admitted.

26. The SACP operates under its own agreement, FMC Agreement No. 011980. Joint Stipulations ¶ 205.

RESPONSE: Admitted.

27. For ocean carriers wishing to make use of on-dock chassis at the Ports of Savannah, Jacksonville, and (currently) Charleston, use of the SACP is currently mandated by the Ports of Savannah and Jacksonville. Joint Stipulations at ¶ 207.

RESPONSE: Admitted.

28. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002436 (Wilson Dep. Ex 9) at 437.

RESPONSE: Admitted.

29. CCM estimates that, as of the end of 2019, the U.S. chassis inventory was approximately [REDACTED]

[REDACTED]

[REDACTED]

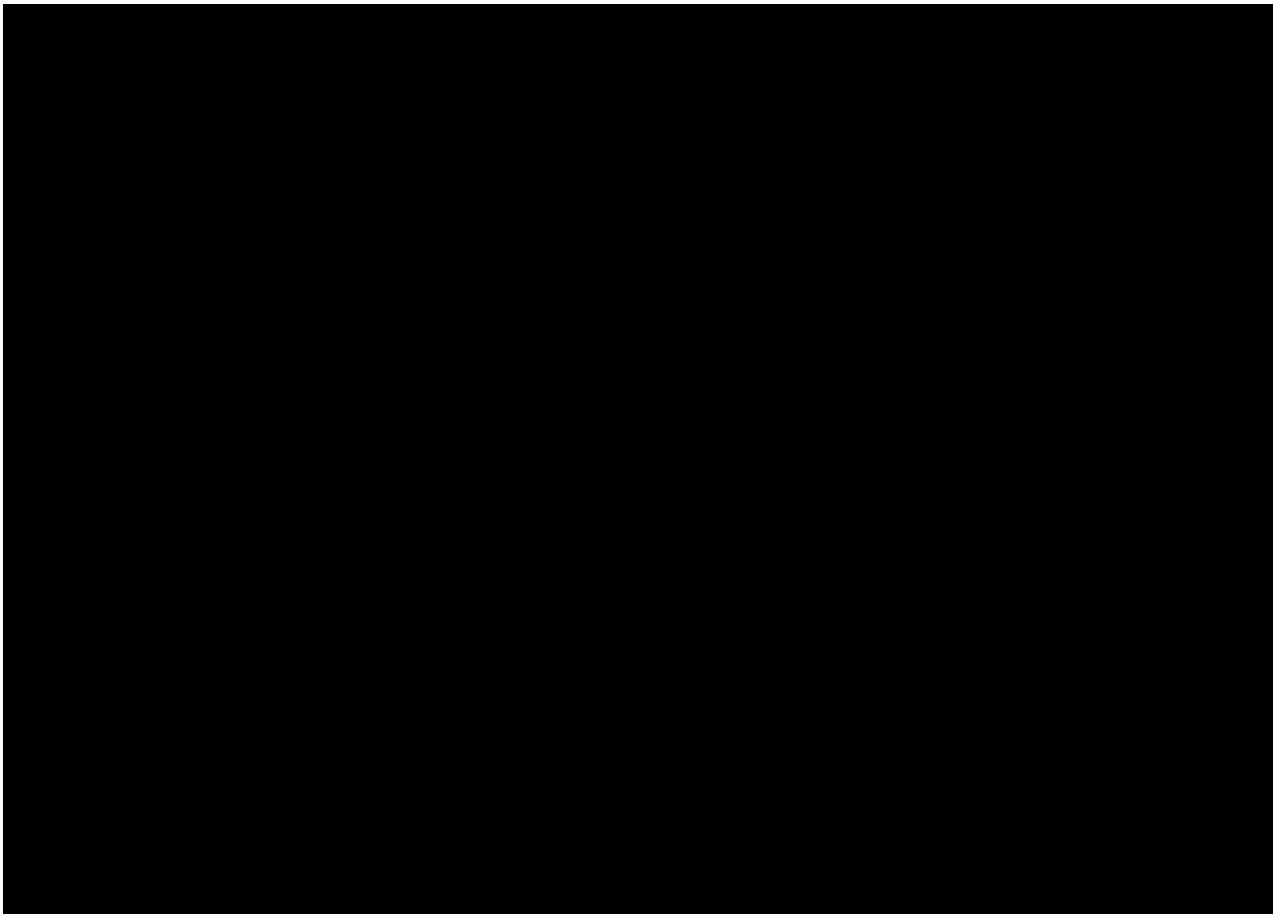


“OCEMA Senior Steering Committee” presentation (March 26, 2020), CX00004883 (Tock Dep. Ex. 13) at 890.

RESPONSE: Admitted that paragraph 29 is an accurate summary of the chart appearing at CX00004890.

30.





Id. at 400.

RESPONSE: Denied. The chart reproduced above, and the summary preceding it, are not an accurate representation of the chart and data appearing in CX00004891 (Bates No. OCE0001400).

31. “Fully interoperable” or “gray” chassis pools are chassis pools managed by a single entity in which equipment contributed by multiple equipment providers are commingled. Joint Stipulations at ¶ 193.

RESPONSE: Admitted

32. A gray chassis pool does not require matching a specific equipment provider’s chassis with a particular ocean carrier’s containers. Joint Stipulations at ¶ 194.

RESPONSE: Admitted

33. The CCM business model is a gray pool model based on the contribution of chassis to an interoperable pool [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Lawrence (OCEMA) Dep., CX00000448 at 90:15-92:21.

RESPONSE: Admitted

34. CCM's strategy was to "[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]" Minutes of the OCEMA Senior Steering Committee (December 5, 2012), CX00005275 (Wilson Dep. Ex. 1) at 277; *see also* Wilson (CCM) Dep., CX00000490 at 51:16-53:5 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. Respondents further deny that the first sentence of this SUMF is an accurate quotation from the referenced Minutes, CX00005275.

35. CCM serves as the manager of its pools and is responsible for the maintenance and repair of contributed chassis for which services it bills chassis contributors as well as for other administrative fees. Coates Initial Expert Report, CX00001524 at 532-33.

RESPONSE: Admitted

36. CCM rules [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Admitted.

37. The need to establish such assignment rules began with the Maher Terminal pool in New Jersey. “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].”

CX00002436 (Wilson Dep. Ex 9) at 437.

RESPONSE: Denied. The excerpts from Ex. 9, CX00002436, do not support the SUMF asserted herein.

38. Consequently, in the years immediately following the establishment of the CCM pools, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” *Id.*

RESPONSE: Admit that the excerpts from Ex. 9, CX00002436 have been accurately quoted.

39. At about the same time as they began selling their chassis, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” *Id.*

RESPONSE: Admit that the excerpts from Ex. 9, CX00002436 have been accurately quoted.

40. When established in 2013, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” *Id.*

RESPONSE: Admit that the excerpts from Ex. 9, CX00002436 have been accurately quoted.

41. The formation of non-party North American Chassis Pool Cooperative, LLC (“NACPC”), an IEP, was affirmatively approved by the Surface Transportation Board in 2013. Pursuant to that decision, NACPC remains under the Board’s continuing jurisdiction. CX00001995 at 998, *North American Chassis Pool Cooperative, LLC – Pooling Application*, Docket No. MCF 21050 (Decision, January 22, 2013).

RESPONSE: Admitted.

42. The concept of a single-provider pool is also known as a “proprietary pool,” “private pool,” or a “neutral pool” (because it serves multiple ocean carriers). In the single-provider model, an individual IEP owns chassis pooled at selected locations, usually in proximity to container yards, and the motor carrier must pick up and drop chassis from selected locations offered by the IEP. The daily charges for chassis used from a private pool are set via negotiated contract or through posted daily rates. CX00001362 at ¶ 57; *see also* CX00001966 at 975, U.S. Government Accountability Office (“GAO”) (2021), *Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role*.

RESPONSE: Admitted.

43. [REDACTED]

[REDACTED]

[REDACTED] An IEP may claim its higher quality chassis in its single-provider pool provides an advantage over use of competing pools. However, [REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 58; *see also* CX00001957, Ari Ashe, *DCLI exiting NVO business to deal directly with truckers*, THE JOURNAL OF COMMERCE (Oct. 6, 2020), https://www.joc.com/trucking-logistics/trucking-equipment/direct-chassislink-inc/dcli-exiting-nvobusiness-deal-directly-truckers_20201006.html.

RESPONSE: Admitted.

44. The “pool of pools” model differs from the gray pool model in that it involves the interoperation of separate chassis pools managed by the participating IEP. Similar to a gray pool, a pool of pools permits a chassis to be used to move the containers of ocean carriers having

contracts with a participating IEP regardless of ownership of the chassis being used, with flexible pick-up/drop-off locations, allowing for inter-pool chassis interoperability. [REDACTED]

[REDACTED]

RESPONSE: Denied. The Pool of Pools is not a model but a specific pool located in the LA/LB region that is operated by DCLI, TRAC and Flexi-Van. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

45. The key active pool of pools in the United States is in San Pedro Bay, supporting the Los Angeles/Long Beach port complex. At the POP, established by DCLI, TRAC Intermodal, and Flexi-Van at the ports of Los Angeles and Long Beach, chassis owned by those IEPs can be used on an interoperable basis. Joint Stipulations at ¶ 195.

RESPONSE: Admitted.

46. The Los Angeles/Long Beach POP began operations in March 2015 and its combined fleet is provided by DCLI's "DCLP", TRAC Intermodal's "TPSP", and FlexiVan's "FLBP" pools. CX00001990, The Pool of Pools, <http://www.pop-lalb.com/> (last visited Apr. 27, 2022).

RESPONSE: Admitted.

47. As of August 20, 2020, the POP website had stated the following:

Prior to the POP, the operation of multiple independent chassis pools in Los Angeles and Long Beach created situations where chassis in different pools were segregated at facilities for use only by certain user bases, and returnable only to a fraction of the facilities otherwise available to receive chassis. These inefficiencies often resulted in lost time and revenue to a motor carrier, duplicative repositioning, and confusion on terminals and rail ramps. The "gray fleet" that is the POP has

smoothed the impacts to chassis operations that would have otherwise occurred in the ever-changing landscape of ocean carrier alliances and terminal operations, increases overall efficiency and availability, and significantly reduces chassis splits.

Id., Pool of Pools, *About Us*,

<https://web.archive.org/web/20200820222149/http://www.pop-lalb.com/>. The U.S.

Department of Justice issued a business review letter to Flexi-Van Leasing, Inc. and

Direct ChassisLink, Inc. with respect to the POP. Joint Stipulations at ¶ 196.

RESPONSE: Admitted.

48. In the POP, usage is assigned to the IEP that has a contract with the ocean carrier whose container is being moved on the chassis, regardless of the IEP whose chassis is physically being used. That IEP then bills the relevant party (e.g., ocean carrier, motor carrier, BCO) for that assigned chassis usage. Declaration of Ronald E. Joseph (Direct ChassisLink), CX00001700 at ¶ 6; Declaration of Nathaniel Seeds (FlexiVan Leasing), CX00001704 at ¶ 6; Declaration of Val Noel (Interpol Inc. d/b/a TRAC Intermodal), CX00001702 at ¶ 6.

RESPONSE: Admit that the first sentence in this SUMF is an accurate recitation of the information provided in the Joseph, Noel and Seeds Declarations. Respondents deny that these Declarations provide information supporting the second sentence in this SUMF.

49. Under the Chassis Use Agreement among DCLI, TRAC, and Flexi-Van, dated as of May 1, 2015, governing the operation of the Pool of Pools, Section 6 (d) provides: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004429 at 434.

RESPONSE: Admit that the excerpt from CX00004429 at 434 has been accurately quoted.

50. [REDACTED]

a trucker choice program [REDACTED] has not been implemented. See Mar. 5, 2018 Email from Frank Grossi (COSCO) to Stacy Normington (OCEMA), CX00002488 at 488 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Admitted.

51. The final chassis provision model is the one in which the motor carrier owns chassis or leases them long-term from an IEP and is responsible for maintenance and repair (“M&R”) and repositioning. Under this model, the supply of chassis is part of the transportation service that the motor carrier provides to its customers. Rodrigue Initial Expert Report, CX00001362 at ¶ 63; *see also* CX00001966 at 976, U.S. Government Accountability Office (“GAO”) (2021), Commercial Shipping: Information on How Intermodal Chassis Are Made Available and the Federal Government’s Oversight Role.

RESPONSE: Admitted.

52. Intermodal container yards have two major configurations that impact chassis operations:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Rodrigue Initial Expert Report, CX00001362 at ¶ 43.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents further deny that operations at rail terminals are material to the extent they relate to efficiency. (Order, at p. 6)

53. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶ 44.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains argumentative and conclusory statements regarding Choice and because its assertions regarding the efficiency of grounded operations at rail terminals are not material or relevant.

54. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶ 44.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of grounded and wheeled operations at rail terminals which are not material or relevant. (Order, at p. 6)

55. According to IMC employee [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Id.; see also Scott George (TCW)

(04/25/22) Decl., CX00001715 at ¶¶ 5, 8; Glenn Fehribach (CPG) (Apr. 25, 2022) Decl., CX00001709 at ¶¶ 4-5, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of grounded operations at rail terminals that are not material or relevant. (Order, at p. 6). Respondents further deny the statement as it is a characterization of non-party hearsay.

56. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 45; see also Scott George (TCW) Dep., CX00000640 at 153:3-154:8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of grounded operations at rail terminals that are not material. (Order, at p. 6)

57. A chassis flip may be required for several reasons, for example, if the motor carrier brings its own chassis. Rodrigue Initial Expert Report, CX00001362 at ¶ 45; *see also* CX00001783 at 814, CPCS Transcom, InterPro Advisory, Prime Focus and Jean-Paul Rodrigue, Guidebook for Assessing Evolving International Container Chassis Supply Models (2012); Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 133:10-13 (“[REDACTED] [REDACTED]”).

RESPONSE: Denied. This SUMF contains assertions regarding the efficiency of operations at rail terminals, specifically with respect to conditions that involve “chassis flips”, which are not material. (Order, at p. 6)

58. Ocean carriers have contracts with railroads for the movement of containers to and from intermodal terminals that they serve.

RESPONSE: Admit that some ocean carriers have contracts with railroads. Deny that all ocean carriers have contracts with railroads. ([REDACTED])

59. CMA has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Norfolk Southern Railway Company, Union Pacific Railroad Company, Canadian Pacific Railway Company, and Canadian National Railway Company to terminals in the Chicago and Memphis markets. *See* Basila (CMA) Dep., CX00000534 at 7:3-12.

RESPONSE: Admitted.

60. COSCO has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Norfolk Southern and BNSF Railway company to terminals in the Chicago market and Canadian National Railway Company, BNSF Railway Company, and CSX to serve terminals in the Memphis market. *See* Houghtalin (COSCO) Dep., CX00000337 at 336:16-337:13; *see also* Feb. 28, 2021, CN Confidential Transportation Agreement No. 660882-AE, CX00003048 at 054; Aug. 1, 2019, Norfolk Southern Railway Company Intermodal Transportation Agreement, CX00003082 at 097; April 1, 2019, BNSF Contract MA111 International Transportation Contract, CX00003038 at 039.

RESPONSE: Admitted.

61. Evergreen has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company and Union Pacific Railroad Company to terminals in the Chicago market and BNSF Railway Company and Union Pacific Railroad Company to serve terminals in the Memphis market. *See* Wang (Evergreen) Dep., CX00000773 at 196:12-197:17; November 1, 2005, BNSF Railway Company International Transportation Agreement, CX00003822; May 1, 2006, Union Pacific Railroad Company Exempt Rail Transportation Agreement, CX00003829 (Wang Dep. Ex. 18) at 833.

RESPONSE: Admitted.

62. Hapag-Lloyd has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Union Pacific Railway Company, BNSF Railway Company, and CSX to terminals in the Chicago market and Norfolk Southern Railway Company to serve terminals in the Memphis

market. *See* Barattini (Hapag-Lloyd) (10/22/2021) Dep., CX00000695 at 330:12-22, 323:25-324:4; *see also* CX00004152 (Barattini Dep. Ex. 34) at 171.

RESPONSE: Admitted.

63. HMM has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Union Pacific Railway Company, Canadian Pacific Railway Company, and Canadian National Railway Company to terminals in the Chicago market and Union Pacific Railroad Company and Canadian National Railway Company to serve terminals in the Memphis market. *See* Compton (HMM) Dep., CX00000207 at 188:7-189:4; February 4, 2020, Canadian Pacific Confidential Contract #36693, CX00004297 at 309; August 1, 2020, Union Pacific Railroad Company, CX00004315 at 320; June 1, 2021, Canadian National Confidential Transportation Agreement No. 575164-AA, CX00004286 at 294.

RESPONSE: Admitted.

64. Maersk has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company and Canadian National Railway Company to terminals in the Chicago market and CSX to serve terminals in the Memphis market. *See* March 18, 2013, CSX Amendment No. 2 to Agreement for Rail Transport Services, CX00004776 at 827; November 30, 2015, BNSF Railway Company Intermodal Transportation Contract Agreement MA-80 Amendment No. 4, CX00004765 at 773; January 3, 2021, Canadian National Railway Company Confidential Transportation Master Agreement No. 572970-AA, CX00004722 at 732.

RESPONSE: Admitted.

65. MSC has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including BNSF Railway Company, CSX, Canadian Pacific Railway Company, and Canadian National Railway Company to terminals in the Chicago market and BNSF Railway Company and Canadian National Railway Company to serve terminals in the Memphis market. *See Roveccio (MSC) Dep.*, CX00000799 at 89:11-18, 90:11-16; March 2020 Amendment ONE to CSXT Intermodal International Agreement, CX00004581; May 1, 2020, Amendment No. 1 to BNSF Intermodal Transportation Contract Agreement MA105, CX00004597; November 15, 2020, Canadian National Railway Company Confidential Transportation Agreement 012808-BZ, CX00004600.

RESPONSE: Admitted.

66. ONE has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Canadian National Railway Company, Union Pacific Railroad Company, Norfolk Southern Railway Company, BNSF Railway Company, and CSX to terminals in the Chicago market and Canadian National Railway Company, Union Pacific Railroad Company, and Norfolk Southern Railway Company to serve terminals in the Memphis market. *See Armstrong (ONE) (10/06/2021) Dep.*, CX00000544 at 149:7-15; Feb. 2, 2019, Norfolk Southern Railway Company Intermodal Transportation Agreement, CX00005541; September 1, 2019, Canadian National Railway Company Confidential Transportation Master Agreement No. 561828-AA, CX00005511; June 1, 2020, Norfolk Southern Railway Company Amendment #1 to Intermodal Transportation Agreement, CX00005563; Aug. 1, 2020, Amendment One to the CSXT Intermodal International Agreement, CX00005533 at 457; July 31, 2022, BNSF Railway Company, CX00005503.

RESPONSE: Admitted.

67. Yang Ming has contracts with the following railroad companies for rail transportation of cargo containers to and from locations in the United States: (i) Norfolk Southern Railway Company; (ii) BNSF Railway Company; (iii) Canadian National Railway Company; (iv) Canadian Pacific Railway Company; (v) CSX; and (vi) Union Pacific Railroad Company. For example, it has contracts with railroads, including BNSF Railway Company and Canadian Pacific Railway Company to terminals in the Chicago market and Union Pacific to serve terminals in the Memphis market. *See* CX00006156, Stipulations Concerning Respondent Yang Ming Marine Transport Corp., at ¶ 6; May 30, 2019, Canadian Pacific Railway Company Confidential Contract #503894, CX00005958 at 978; July 1, 2018, BNSF Railway Company Amendment No. 4 to International Transportation Agreement MA40, CX00005944 at 955; January 1, 2014, Union Pacific Railroad Company First Amendment to Exempt Rail Transportation Agreement, CX00005981 at 983.

RESPONSE: Admitted.

68. ZIM has contracts with multiple railroads to transport its containers to and from inland intermodal terminals. For example, it has contracts with railroads, including Canadian National Railway Company and CSX to terminals in the Chicago market and the Memphis markets. *See* *Messing (ZIM) Dep.*, CX00000260 at 79:13-22, 82:24-83:1; Feb. 11, 2016, Second Amendment to the Canadian National Railway Company Confidential Transportation Agreement No. 016223-AY, CX00006136.

RESPONSE: Admitted.

69. Through agreement, tariff, or regulation, railroads require ocean carriers to have an adequate supply of chassis to load arriving containers, particularly at wheeled terminals. *Armstrong (ONE) (10/06/2021) Dep.*, CX00000544 at 147:21-148:2.

RESPONSE: Denied. The referenced testimony states: “The language in our agreements just says that we’re responsible for designating equipment – a chassis provider at each facility and that provider providing adequate equipment to support our business.”

70. At wheeled terminals, railroads require ocean carriers to designate a single chassis pool from which the railroad or ramp operator will take the chassis and on to which the ocean carrier’s containers will be loaded. Such pools may include interoperable pools such as CCM pools as well as single-provider pools operated by the major IEPs. [REDACTED]

[REDACTED]

[REDACTED]

“Letter of Authority,”² (September 11, 2018), CX00005416 (Armstrong Dep. Ex. 14); Barattini (Hapag-Lloyd) (10/22/2021) Dep., CX00000695 at 328:18-333:18; *see also* Rodrigue Rebuttal Expert Report, CX00001606 at ¶¶ 32-34.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of operations at rail terminals that are not material or relevant. (Order, at p. 6)

71. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 46.

² This letter was created from a template provided by the railroad that allowed the ocean carrier to designate TRAC, CCM, DCLI, FLEXI, or OTHER as its sole chassis provider at each ramp operated by Union Pacific. *See also* “Letter of Authority for Chassis Pool Provisioning at Union Pacific Railroad Intermodal Terminals with Evergreen” (June 30, 2020), CX00003813.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of wheeled operations at rail terminals that are not material or relevant. (Order, at p. 6)

72. Railroad operating procedures may also limit the ability of motor carriers' ability to use a chassis other than one from the pool designated by the ocean carrier whose container is to be moved. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

at ¶ 153.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of railroad operations that are not material or relevant. (Order, at p. 6). Respondents further deny the statement as it is a characterization of non-party hearsay.

73. The Chassis Choice program was developed by OCEMA and CCM during 2012-13. "[REDACTED]

[REDACTED]

[REDACTED]" "The Chassis "Choice" Dilemma" presentation, CX00002160 (Wilson Dep. Ex. 10) at 163.

RESPONSE: Admitted.

74. In 2012-13 the members of OCEMA and which had representatives on its Senior Steering committee included:

- APL

- CMA-CCM
- COSCO
- Evergreen
- Hamburg Sud
- Hapag-Lloyd
- Hyundai (HMM)
- K Line³
- Maersk
- MOL
- NYK
- OOCL
- Yang Ming
- ZIM

See e.g., “Minutes of the OCEMA Senior Steering Committee Meeting” (December 5, 2012), CX00005275 (Wilson Dep. Ex. 1) at 280; “Minutes of the OCEMA Senior Steering Committee Meeting” (Sept. 11, 2013), CX00005201 at 206.

RESPONSE: This SUMF is not a complete list of the representatives on the OCEMA Senior Steering Committee during the specified time frame, and CMA-CGM is incorrectly described as “CMA-CCM”. With those qualifications, Respondents admit this SUMF.

75. As summarized by CCM:

■ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

³ K-Line, MOL, and NYK were part of an ownership consolidation that became Ocean Network Express in 2018. Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 15:14-20.

[REDACTED]

“The Chassis “Choice” Dilemma” presentation, CX00002160 (Wilson Dep. Ex. 10) at 164 (emphasis in original); *see also* Tock (CCM) Dep., CX00000459 at 123:14-124:3 (testifying that CCM will “ [REDACTED]

[REDACTED]”).

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. The quoted excerpt from the cited presentation is not evidence of the truth of the matters asserted therein, of which no evidence is cited in the proposed SUMF. Admit that the excerpt from CX00002160 and the Tock testimony have been accurately quoted.

76. “Box Rules” refers to the assignment of chassis or chassis usage based on the ownership of the container and that ocean carrier’s designation of the default chassis provider. *See* Wilson (CCM) Dep., CX00000490 at 60:19-61:3.

RESPONSE: Denied. The cited testimony, which does not support this SUMF, states: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”

77. As originally adopted in 2013, CCM Pool Operations Manual Section 8.2 simply provided that the User (i.e., the IEP) Customer (i.e., ocean carrier) information provided to the CCM pool manager was to include a “Description of whether Customer’s Off-Terminal Usage is exclusive to the User or with exceptions.” This provision formalized the choice by exception process. CX00005207 (Tock Dep. Ex. 2) at 231, 233.

RESPONSE: Denied. This SUMF does not accurately describe nor does it accurately quote the language in CX00005207.

78. In 2019, the CCE/CCM Board members approved changes to section 8 of the CCM Pool Operations Manual Version 2.9 effective April 1, 2019, [REDACTED]

[REDACTED] “CCM Pools LLC (CCMP) Operations Manual Version 2.9” (April 1, 2019), CX00002170.

RESPONSE: Denied. This SUMF is ambiguous. Respondents refer to CX00002178 with respect to changes to section 8 of the CCM Operations Manual, effective April 1, 2019.

79. Section 8.5 stated, “[REDACTED]

[REDACTED]” *Id.* at 190.

RESPONSE: Admitted.

80. Section 8.7 stated:

Id.

RESPONSE: Denied. This SUMF is not an accurate quotation of the language contained in ¶8.7 of the CCM Operations Manual.

81. According to the description of changes provided at the front of Version 2.9, the revisions to section 8 were “ [REDACTED] [REDACTED] ” *Id.* at 174.

RESPONSE: Admitted; but deny that the page citation referenced in this SUMF is accurate.

82. Sections 8.8 and 8.9 [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.* at 190.

RESPONSE: Denied. This SUMF is not an accurate description of sections 8.8 and 8.9 at CX00002190.

83. CCM regarded the adoption of Rules 8.5, 8.7, 8.8, and 8.9 as the codification in the Operations Manual of policies that were already in place. As a result, the revisions were not presented to the OCEMA Senior Steering Committee but were approved by the Boards of Managers of CCE, CCM, and CCM Pools, LLC. Tock (CCM) Dep., CX00000459 at 99:12-100:25.

RESPONSE: Admitted.

84. CCM Pool Operations Manual Version 4.0, effective October 1, 2019, renumbered Rules 8.5, 8.7, 8.8, and 8.9 as Rules 5.5, 5.7, 5.8, and 5.9. The text of these Rules as of October 1, 2019, remains in effect. “CCM Pools LLC (CCMP) Operations Manual Version 4.0” (October 1, 2019), CX00002379.

RESPONSE: Admitted.

85. Current CCM Pool Rule 5.7 gives ocean carriers the ability to decide whether the ocean carrier consents to a motor carrier's request for chassis choice. *Id.* at 398.

RESPONSE: Denied. This SUMF is not an accurate description of section 5.7 at CX00002398-9.

86. As of January 28, 2022, CCM's website contained the following information concerning a chassis customer's choice in choosing its chassis provider:

CHOICE PROGRAM
MOTOR CARRIERS AND SHIPPERS

Often the chassis customer has little choice in choosing its chassis provider. A container is placed on a chassis at the rail or ocean terminal before the motor carrier arrives for pick up. Unless the container is taken off the chassis and placed on another chassis, the chassis provider is already determined by the ocean container. Within a CCM pool, there are many chassis providers and some of them participate in a program that allows the customer to **choose a chassis provider** without having to lift the container onto a new chassis. . . .

CCM can allow the chassis customer to select their preferred chassis provider in its pools on specified chassis movement. **There are some restrictions.** Shippers and motor carriers can choose a provider when the ocean carrier and the ocean carrier's on-terminal chassis provider participate in this CCM program.

CX00001992, CCM, *Choice Program*, <https://www.ccmpool.com/Chassis-Pool/Choice-Program.aspx> (last visited Apr. 27, 2022) (emphasis in original).

RESPONSE: Denied. This SUMF is an incomplete quotation of the language appearing at <https://www.ccmpool.com/Chassis-Pool/Choice-Program.aspx>

87. The following table provides ocean carriers' selected chassis provision option within the CCM Pools as listed on CCM's website as of April 23, 2022:

Ocean Carrier	Chassis Provider	CCM Pool	Chassis Provision Option within CCM Pools
CMA	Trac Intermodal	SACP	Chassis provided only by Trac Intermodal unless exception is requested
COSCO Shipping	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested

COSCO Shipping	Trac Intermodal	MCCP	Trac Intermodal provides chassis unless exception requested
Evergreen	DCLI	SACP	Chassis provided by DCLI only
Evergreen	DCLI	MCCP	Chassis provided by DCLI only
Hapag Lloyd	NACPC	SACP	NACPC provides chassis unless exception requested and approved
Hapag Lloyd	Trac Intermodal	MCCP	Trac Intermodal provides chassis unless exception requested and approved
HMM	DCLI	SACP	Chassis provided only by DCLI
HMM	DCLI	MCCP	Chassis provided only by DCLI
Maersk	DCLI	SACP	Chassis provided only by DCLI
MSC	DCLI	SACP	Chassis provided only by DCLI
MSC	DCLI	MCCP	Chassis provided only by DCLI
OOCL	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested
ONE	Flexi-Van	SACP	Flexi-Van provides chassis unless exception requested and approved
ONE	NACPC	MCCP	NACPC provides chassis unless exception requested and approved
Wan Hai	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved
Yang Ming	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved
ZIM	Trac Intermodal	SACP	Trac Intermodal provides chassis unless exception requested and approved

CCM, *Chassis Provider Search*, <https://www.ccmpool.com/Membership/Chassis-Providers/> (last visited Apr. 23, 2022).

RESPONSE: Denied. This SUMF is an inaccurate summary of information on the CCM,

Chassis Provider Search webpage. Some of these inaccuracies are set forth below:

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

CMA-CGM (“CMA”)

88. As of November 18, 2017, [REDACTED]
Fentress (CMA) Dep., CX00000916 at 233:12-18; CX00002684 (Fentress Dep. Ex. 23) at 684.

[REDACTED]

[REDACTED] Fentress (CMA) Dep., CX00000916 at 234:4-13. CCM’s website at the time stated only that chassis for CMA moves in the CCM pools would be provided by TRAC only and did not reference the option to request an exception. Fentress (CMA) Dep., CX00000916 at 236:2-14; CX00002684 (Fentress Dep. Ex. 23) at 684.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

89. As of December 2018, [REDACTED]

[REDACTED]. See Fentress (CMA) Dep., CX00000916 at 119:15-18

[REDACTED], 222:17-223:24; CX00002713 (Fentress Dep. Ex. 20) at 719.

RESPONSE: Admitted.

90. As of February of 2018, [REDACTED]

[REDACTED] Fentress (CMA) Dep., CX00000916 at 241:11-25; *see also* CX00002749 (Fentress Dep. Ex. 24) at 749. [REDACTED]

[REDACTED] Fentress (CMA) Dep., CX00000916 at 242:12-19.

RESPONSE: Admitted.

COSCO

91. COSCO [REDACTED]

[REDACTED] See CX0002846 at 846 (December 6, 2018, email from COSCO's Frank Grossi to COSCO employees, stating "[REDACTED]

[REDACTED]).

RESPONSE: Admitted.

92. COSCO's Interrogatory Responses state that with respect to the SACP, "COSCO has always permitted chassis choice for MH moves" and "[t]o the best of its knowledge, COSCO is not aware of any instances in which it did not consent to chassis choice." COSCO Resps. &

Objs. to Interrog. No. 3, CX00002013 (Houghtalin Dep. Ex. 10) at 018.

RESPONSE: Admitted.

Evergreen

93. [REDACTED]

[REDACTED]

Wang (Evergreen) Dep., CX00000773 at 37:18-38:4 (“[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. Motor carriers are not charged for CH or MH moves. [REDACTED]

[REDACTED]

[REDACTED]

94. [REDACTED]

[REDACTED]

[REDACTED]” Wang (Evergreen) Dep., CX00000773 at 35:23-36:13 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”); Wang (Evergreen) Dep., CX00000773 at 37:11-17 (“[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

95. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00003249

(Wang Dep. Ex. 3) at 249; Wang (Evergreen) Dep., CX00000773 at 35:23-36:13 (“[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Further, the SUMF does not accurately characterize the cited testimony.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

96. As a result, [REDACTED]

[REDACTED]. Wang (Evergreen) Dep., CX00000773 at 153:9-19 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

97. [REDACTED]

[REDACTED]. Wang (Evergreen) Dep., CX00000773 at 152:23-153:8

(“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF misstates the testimony and Evergreen’s business model.

(Coates Declaration ¶21c, APP2209)

98. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] February 11, 2012 Email from Philip Wolfe (DCLI) to Tom Wang (Evergreen), CX00003779 at 779; *see also* Wang (Evergreen) Dep., CX00000773 at 227:16-228:9 (“... [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Admitted.

Hapag-Lloyd

99. [REDACTED]

Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 187:4-13.

RESPONSE: Admitted.

100. In CCM pools, usage for MH movements defaults to Hapag-Lloyd’s default provider, unless a motor carrier or BCO notifies CCM prior to requesting an alternative chassis provider. CX00003959 (Barattini Dep. Ex. 17) at 959.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

101. Pursuant to the terms in Hapag-Lloyd's January 1, 2016, EUA with TRAC,

[REDACTED]

Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 150:11-152:2; CX00004115

(Barattini Dep. Ex. 13) at 130; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep.,

CX00000654 at 162:10-23 ([REDACTED])

[REDACTED], 171:21-172:20; CX00002463 (Barattini Dep.

Ex. 15) at 465 ([REDACTED])

[REDACTED]; 187:14-188:3;

CX00003959 (Barattini Dep. Ex. 17) at 959 ([REDACTED])

[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. Choice in CCM pools refers to requests by a BCO or trucker to request billing from another IEP in the CCM pool, not a request “to use another chassis provider’s chassis” in the pool. The cited testimony of Hapag’s witness Tom Barattini in the response to SUMF 100 and the citations in this SUMF 101 provide ample evidence of [REDACTED]

[REDACTED]

102. [REDACTED]

[REDACTED]

[REDACTED] CX00002459 at 460 (Barattini

writes to Flexport, “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. In regions where Hapag-Lloyd utilizes a proprietary pool, a motor carrier does not need to request choice to use another IEP or IEP pool in that region, or to use its own chassis. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Hapag-

Lloyd does not control whether a flip charge is incurred. Railroads have exclusive control over whether a terminal is grounded or wheeled and whether a chassis flip results in a charge.

HMM

103. [REDACTED]

[REDACTED]

Compton (HMM) Dep., CX00000207 at 140:14-141:5 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”); CX00004220 (Compton

Dep. Ex. 16) at 221 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

104.

[REDACTED]

[REDACTED]

[REDACTED] *Id.* (“[REDACTED]

[REDACTED]

[REDACTED]”); Compton (HMM) Dep.,

CX00000207 at 141:13-18 (“[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Admitted.

105.

[REDACTED]

[REDACTED] Compton (HMM) Dep.,

CX00000207 at 134:21-135:8.

RESPONSE: Denied. The assertion in this SUMF does not accurately reflect the evidence cited. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

106. As a result of those negotiations, on November 30, 2017, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00004223 (Compton Dep. Ex. 15) at 226.

RESPONSE: Admitted.

107. In deciding whether or not to grant a request for chassis choice for MH movements, “[REDACTED]

[REDACTED]

[REDACTED].” HMM’s corporate witness confirmed that the

“[REDACTED]

[REDACTED]. Compton (HMM) Dep., CX00000207 at 135:17-136:4.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

108. [REDACTED]

[REDACTED]

[REDACTED]. CX00004276 at
276, 283.

RESPONSE: Denied. The statement mischaracterizes [REDACTED]

[REDACTED]

[REDACTED]

109. [REDACTED]

[REDACTED]

[REDACTED] CX00004243 at 243.

RESPONSE: Denied. The statement mischaracterizes [REDACTED]

[REDACTED]

[REDACTED]

110. [REDACTED]

[REDACTED]

[REDACTED] CX00004267 at 267, 269.

RESPONSE: Denied. The statement mischaracterizes [REDACTED]

[REDACTED]

[REDACTED]

111. [REDACTED]

[REDACTED] CX00004271 at 271-72; *see also* CX00004273 ([REDACTED]).

RESPONSE: Denied to the extent that this SUMF characterizes [REDACTED]

112. [REDACTED]

[REDACTED] CX00004216 at 216, 217 (emphasis in the original email).

RESPONSE: Denied. The document, including its context, speaks for itself.

113. [REDACTED]

[REDACTED] CX00004245

(Compton Dep. Ex. 18) at 245, 252-61 ([REDACTED])

RESPONSE: Denied. The email speaks for itself. Furthermore, to the extent that IMCC describes locations outside of the geographic scope in which discovery was permitted, the statement is denied because it is not material.

Maersk

114. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Weisberg (Maersk) Dep., CX00007709 at 50:23-51:6; CX00004705 (Weisberg Dep. Ex. 4) at 707 (“[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

115. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004709 (Weisberg Dep. Ex. 12);

Weisberg (Maersk) Dep., CX00000709 at 103:6-104:23 [REDACTED]

[REDACTED])

RESPONSE: Denied. This statement ignores the more relevant part of the testimony which is that w [REDACTED]

[REDACTED]

[REDACTED].

116. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004710 at 710.

RESPONSE: Denied. This SUMF mischaracterizes this example as a regular occurrence. The cited evidence does not reflect the fact that [REDACTED]

[REDACTED]

117. [REDACTED]

[REDACTED] See Weisberg (Maersk) Dep., CX00000709 at

101:25-102:18 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”); CX00004720 (Weisberg Dep. Ex. 11) at 720 ([REDACTED]

[REDACTED]).

RESPONSE: Denied. The testimony that IMCC cites speaks for itself.

118. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004703 (Weisberg Dep. Ex. 15) at 703.

RESPONSE: Admitted to the extent that [REDACTED]

[REDACTED] This statement is denied to the extent that it describes statements made by a non-party that cannot be properly admitted by Respondents.

119. [REDACTED]

[REDACTED] Weisberg (Maersk) Dep., CX00000709 at 103:24-104:8 ([REDACTED]).

RESPONSE: Denied. The testimony cited by IMCC speaks for itself.

120. [REDACTED]

[REDACTED] Weisberg (Maersk) Dep., CX00000709 at 108:12-112:24; CX00004699 (Weisberg Dep. Ex. 13) at 700 ([REDACTED]).

RESPONSE: Denied. [REDACTED]

121. [REDACTED]

[REDACTED] Weisberg (Maersk) Dep., CX00000709 at 113:18-115:15; CX00004715 (Weisberg Dep. Ex. 14) at 715.

RESPONSE: Denied. The record does not support a conclusion that [REDACTED]

[REDACTED]

122. [REDACTED]

[REDACTED] Weisberg (Maersk) Dep.,
CX00000709 at 115:3-8.

RESPONSE: Denied. As described in the previous paragraph, the testimony does not support
the position stated by IMCC here. [REDACTED]

[REDACTED]

123. As of November 21, 2021, the CCM website identified Maersk’s choice policy as
being to not offer choice. Weisberg (Maersk) Dep., CX00000709 at 51:7-15. [REDACTED]

[REDACTED]

Weisberg (Maersk) Dep., CX00000709 at 51:16 ([REDACTED]).

RESPONSE: Denied. The testimony cited speaks for itself and does not do the work that IMCC
describes it as doing in its “fact.” [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

MSC

124. [REDACTED]

Roveccio (MSC) Dep., CX00000799 at 180:15-19 (“[REDACTED]

[REDACTED]”).

RESPONSE: Admitted.

125. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 37:19-38-7,

120:8-20.

RESPONSE: Admitted.

126. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at

35:15-25, 43:25-44:17.

RESPONSE: Admitted.

127. Both the CUC and ECU are “[REDACTED]

[REDACTED]” Roveccio (MSC) Dep., CX00000799 at 36:5-9.

RESPONSE: Admitted.

128. [REDACTED]

[REDACTED]

[REDACTED]” Roveccio (MSC) Dep.,

CX00000799 at 52:3-11.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

129. The per diem is “[REDACTED]

[REDACTED]” Roveccio (MSC) Dep., CX00000799 at 52:23-16.

RESPONSE: Admitted.

130. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 108:10-11; CX00002256 (Roveccio Dep. Ex.

15) at 256 (Roveccio: “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]); Roveccio (MSC) Dep., CX00000799 at 116:24-117:7 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. This SUMF mischaracterizes the testimony it cites. This SUMF describes a portion of MSC’s testimony that is only part of an answer to support its position here.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Finally, IMCC

characterizes MSC as refusing choice when it simply reiterates the policy of securing chassis from DCLI when the customer has paid a chassis usage fee.

131. [REDACTED]

[REDACTED] CX00004578 (Roveccio Dep. Ex. 16) at 578 (Roveccio: “[REDACTED]
[REDACTED]
[REDACTED]”); Roveccio (MSC) Dep., CX00000799 at 130:21-131:9 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] IMCC infers far more than the record supports here.

132. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 38:4-21, 45:2-8.

RESPONSE: Admitted.

133. [REDACTED]

[REDACTED]. CX00004549 (Roveccio Dep. Ex. 17) at 549 (“[REDACTED]

[REDACTED]”); Roveccio (MSC) Dep., CX00000799 at 134:22-135:2 (“[REDACTED]

[REDACTED]”).

RESPONSE: Denied. This SUMF mischaracterizes the testimony. [REDACTED]

134. [REDACTED]

[REDACTED] Roveccio (MSC) Dep, CX00000799 at 134:14-21 ([REDACTED]

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

135. [REDACTED] Roveccio (MSC) Dep.,
CX00000799 at 137:16-139:3; CX00004549 (Roveccio Dep. Ex. 17) at 549 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

136. [REDACTED]

[REDACTED]

[REDACTED]

CX00004549 (Roveccio Dep. Ex. 17) at 549; Roveccio (MSC) Dep., CX00000799 at 138:8-19.

RESPONSE: Denied. [REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

137. [REDACTED]

[REDACTED] Roveccio
(MSC) Dep., CX00000799 at 138:20-139:2.

RESPONSE: Denied. IMCC's conclusion here is overstated. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
ONE

138. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep.,
CX00000544 at 49:9-13.

RESPONSE: Admitted.

139. [REDACTED]. Armstrong (ONE)
(10/06/2021) Dep., CX00000544 at 93:2-12.

RESPONSE: Admitted.

140. [REDACTED]
[REDACTED]

[REDACTED] Armstrong (ONE)
(10/06/2021) Dep., CX00000544 at 50:2-4.

RESPONSE: Admitted.

141. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 50:17-23.

RESPONSE: Denied. [REDACTED]
[REDACTED]

[REDACTED] IMCC
overstates the testimony here.

142. [REDACTED] Armstrong

(ONE) (10/06/2021) Dep., CX00000544 at 50:24-51:3.

RESPONSE: Denied. This SUMF misrepresents the cited testimony, [REDACTED]

143. [REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 51:4-6.

RESPONSE: Denied. This SUMF misrepresents the cited testimony, [REDACTED]

144. [REDACTED]

Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 93:2-12.

RESPONSE: Admitted.

145. [REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep.,

CX00000544 at 93:2-12.

RESPONSE: Denied. This SUMF misrepresents the testimony by describing only part of

ONE's response. ONE explicitly states that [REDACTED]

146.

[REDACTED]
[REDACTED]
[REDACTED] CX00005422 (Armstrong Dep. Ex. 7) at 423;
see also Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 95:6-14 ([REDACTED])
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]”).

RESPONSE: Denied.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

147.

[REDACTED], CX00002468
(Armstrong Dep. Ex. 3) at 470 (“[REDACTED]
[REDACTED]”).

RESPONSE: Denied.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

148.

[REDACTED]
[REDACTED]” Armstrong (ONE)

(10/28/2021) Dep., CX00000606 at 111:7-11; *see also id.* at 126:23-127:7 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. The testimony cited speaks for itself.

149. [REDACTED]

[REDACTED] CX00002468 (Armstrong Dep. Ex. 3) at 468-69; Armstrong (ONE)

(10/06/2021) Dep., CX00000544 at 63:4-16.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

IMCC overstates the evidence in the form of an unsupported conclusion here.

150. [REDACTED]

[REDACTED] Armstrong (ONE) (10/28/2021) Dep., CX00000606

at 94:16-19; CX00005495 (Armstrong Dep. Ex. 22) at 495.

RESPONSE: Denied. [REDACTED]

[REDACTED]

151. [REDACTED]

[REDACTED] CX00005493 (Armstrong Dep. Ex. 24) at 493; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 104:16-18.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

152. [REDACTED]

CX00005482 (Armstrong Dep. Ex. 25) at 483; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 107:22-109:20.

RESPONSE: Denied. This SUMF mischaracterizes the evidence. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

153. [REDACTED]

CX00005500 (Armstrong Dep. Ex. 26) at 500; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 120:5-16.

RESPONSE: Denied. This SUMF mischaracterizes the evidence. [REDACTED]

[REDACTED]

[REDACTED].

154. [REDACTED]

[REDACTED] CX00005480 (Armstrong Dep. Ex. 27) at 480; CX00005478(Armstrong Dep. Ex. 28) at 478; Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 122:15-125:15.

RESPONSE: Denied. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Wan Hai

155. [REDACTED]. Chung (Wan Hai)

Dep., CX00000304 at 22:17-21.

RESPONSE: Admitted.

156. [REDACTED] Chung (Wan Hai)

Dep., CX00000304 at 87:7-9; CX00004864, CCM Chassis Provider Matrix (Chung Dep. Ex. 9).

RESPONSE: Denied. [REDACTED]

[REDACTED]
[REDACTED]

157. [REDACTED]

[REDACTED]

[REDACTED] Chung (Wan Hai) Dep., CX00000304 at 88:10-
25 (“[REDACTED]”).

RESPONSE: Denied. This SUMF misrepresents Wan Hai’s policy and ignores direct testimony
from Wan Hai that [REDACTED]

[REDACTED].

158. [REDACTED]

[REDACTED]. *Id.* at 88:25-

89:7.

RESPONSE: Admitted.

159. [REDACTED]

Id., at 89:19-90:12. (“ [REDACTED]

[REDACTED]”).

RESPONSE: Denied. The testimony cited speaks for itself. Furthermore, TRAC is best positioned to respond to this “fact” as the party that is implicated by it, but also because the testimony cited literally states that [REDACTED] does not have the information in question.

Yang Ming

160. Yang Ming sometimes allowed motor carriers and BCOs to exercise chassis choice in MH movements under an exception-with-approval program. CX00002136 at 141, Yang Ming Resps. & Objs. to Interrog. No. 3 (Micena Dep. Ex. 12); *see also* June 27, 2017 Email from Austin Chen (Yang Ming) to Ken Tock (CCM), CX00005920 at 920 (“ [REDACTED]

[REDACTED]’”)

RESPONSE: Denied. This SUMF is an incomplete quotation of the language appearing at CX00005920 at 920, which further states “ [REDACTED]

[REDACTED]”

161. Yang Ming’s Interrogatory Responses state that with respect to the SACP, “Yang Ming has sometimes permitted chassis choice” and “[t]o the best of its knowledge, Yang Ming

has approved most requests except where the request involved carrier haulage.” CX00002136 at 141, Yang Ming Resps. & Objs. to Interrog. No. 3 (Micena Dep. Ex. 12).

RESPONSE: Admitted.

162. [REDACTED]

[REDACTED] See, e.g., December 7, 2018 Email from Tony Micena (Yang Ming) to Ken Tock (CCM), CX00002457 at 457 [REDACTED]; see also Micena (Yang Ming) Dep., CX00000001 at 361:17-362:25.

RESPONSE: Admitted.

163. [REDACTED]

[REDACTED] See, e.g., October 5, 2018 Email from Tony Micena (Yang Ming) to Will Douglas (IMC), CX00004460 at 460 (“[REDACTED]”).

RESPONSE: Denied. [REDACTED]

164. [REDACTED]

[REDACTED]” CX00005859 (Micena Dep. Ex. 18) at 864; see also Micena (Yang Ming) Dep., CX00000001 at 282:22-283:10, 376:13-377:12 (“[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Admitted. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

165. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] Micena (Yang Ming) Dep., CX00000001 at 383:5-384:11; CX00005832(Micena Dep. Ex. 25) at 837.

RESPONSE: Admitted. [REDACTED]
[REDACTED]

ZIM

166. ZIM generally allowed motor carriers and BCOs to exercise chassis choice in MH movements.

RESPONSE: Admitted.

167. In the record, there are fifty-two requests between April 4, 2016, and February 5, 2021, for chassis choice for MH moves. ZIM Interrogatory No. 3 (Messing Dep. Ex. 16) at 5.

RESPONSE: Admitted.

168. Of those 52 requests, 51 were approved. ZIM Interrogatory No. 3 (Messing Dep. Ex. 16) at 5.

RESPONSE: Admitted.

169. The sole non-approval arose when the merchant sought to exercise chassis choice to TRAC, who was already ZIM's chassis provider, and so "[REDACTED]
[REDACTED]" Messing (ZIM) Dep., CX00000260 at 129:23-130:3; ZIM Interrogatory No. 3 (Messing Dep. Ex. 16) at 5.

RESPONSE: Admitted.

170. [REDACTED]
[REDACTED]. See CX00006145, "Choie package data.xlsx" spreadsheet.

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED] See CX00006145, "Choie package data.xlsx" spreadsheet.

171. [REDACTED]
[REDACTED] *Id.*

RESPONSE: Denied. [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

CMA

172. [REDACTED]

[REDACTED] Fentress

(CMA) Dep., CX0000916 162:4-6; 169:17-21.

RESPONSE: Admitted.

173. [REDACTED]

[REDACTED] CX00002736 (Fentress Dep. Ex. 13) at 743.

RESPONSE: Denied. [REDACTED]

[REDACTED] Most notably, this

evidence relates to a non-party to this litigation and does not lend itself to characterizations by the parties to the litigation as fact.

174. [REDACTED]

[REDACTED] as shown below:

[REDACTED]

[REDACTED]

Id. at 644; Fentress (CMA) Dep., CX0000916 at 163:4-164:24 (“ . . . [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED]

Most notably, this evidence relates to a non-party to this litigation and does not lend itself to characterizations by the parties to the litigation as fact.

175. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00002686
(Fentress Dep. Ex. 14) at 707; Fentress (CMA) Dep., CX0000916 171:21-172:20 (“.. [REDACTED]

[REDACTED]”).

RESPONSE: Denied. [REDACTED]

[REDACTED] Most notably, this evidence relates to a non-party to this litigation and does not lend itself to characterizations by the parties to the litigation.

176. [REDACTED]

[REDACTED]
[REDACTED]
CX00002686 (Fentress Dep. Ex. 14) at 686. [REDACTED]
[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. [REDACTED]

[REDACTED] Most notably, this evidence relates to a non-party to this litigation and does not lend itself to characterizations by the parties to the litigation.

177. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED] See January 1, 2017, CMA/TRAC CUA, CX00002586 (Fentress Dep. Ex. 16) at 586, 602-08.

RESPONSE: Admitted.

178. [REDACTED]

[REDACTED] *Id.* at 589.

RESPONSE: Admitted.

179. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 617.

RESPONSE: Admitted.

180. [REDACTED]

[REDACTED]. See December 1, 2017, CMA/TRAC Amendment, CX00002582 at 582, 585.

RESPONSE: Admitted.

181. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See December 3, 2019 CMA/TRAC CUA, CX00002536 at

554-562.

RESPONSE: Admitted.

182. [REDACTED]

[REDACTED] *Id.* at 541.

RESPONSE: Admitted.

183. [REDACTED]

[REDACTED]

[REDACTED] CX00002629 (Fentress Dep. Ex. 18) at

633. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

184. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id.; Fentress (CMA) Dep., CX00000916 at 210:11-211:2

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

185.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00002629

(Fentress Dep. Ex. 18) at 635; Fentress (CMA) Dep., CX00000916 at 211:11-25 [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Denied.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

The testimonial evidence cited by IMCC is also hypothetical and speculative of the intent of a non-party to this litigation.

186.

[REDACTED]
[REDACTED]
[REDACTED] CX00002629 (Fentress Dep. Ex. 18) at 634.

RESPONSE: Denied.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

187. Pursuant to the December 3, 2019 CMA/TRAC CUA:

[REDACTED]

December 3, 2019 CMA/TRAC CUA, CX00002536 at 551 (emphasis in original).

RESPONSE: Denied. This SUMF is not material, because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. [REDACTED]

[REDACTED]

[REDACTED]

188. Pursuant to the December 3, 2019, CMA/TRAC CUA, [REDACTED]

[REDACTED]

[REDACTED]

Id. at 599–601.

RESPONSE: Denied. This SUMF is not material, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

189. Pursuant to the December 3, 2019, CMA/TRAC CUA, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id. at 570.

RESPONSE: Denied. This SUMF is not material, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

190. [REDACTED]

[REDACTED] See March 1, 2021,

Amendment, CX00002521 at 521–24.

RESPONSE: Admitted.

COSCO

191. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See May 1, 2016, COSCO/TRAC CUA, CX00003121 (Houghtalin Dep. Ex. 12) at 121, 131; *see also* Houghtalin (COSCO) Dep., CX00000337 at 192:8-25, 193:5-25.

RESPONSE: Admitted.

192. [REDACTED]

[REDACTED] *Id.* at 838; Houghtalin (COSCO) Dep., CX00000337 at 192:8-25, 194:9-19.

RESPONSE: Admitted.

193. [REDACTED]

[REDACTED] Houghtalin (COSCO) Dep., CX00000337 at 188:2-10; *see also* CX00002818 (Houghtalin Dep. Ex. 13).

RESPONSE: Admitted.

194. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]” CX00002826 (Houghtalin Dep. Ex. 14) at 826-27; *see also* Houghtalin (COSCO) Dep., CX00000337 at 225:22-226:23.

RESPONSE: Denied. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

195. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00002826 (Houghtalin Dep. Ex. 14) at 832; *see also* Houghtalin (COSCO) Dep., CX00000337 at 231:2-232:13.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

196. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002886 (Houghtalin Dep. Ex. 15) at 889; *see also* Houghtalin (COSCO) Dep., CX00000337 at 244:16-246:16 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF ignores significant contextual information included in the same exhibit that IMCC cites, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

197. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See July 1, 2018, COSCO/DCLI
CUA, CX00002796 (Houghtalin Dep. Ex. 16) at 796, 798, 808; *see also* COSCO SS List_v2,
CX00003117 (Houghtalin Dep. Ex. 17); Houghtalin (COSCO) Dep., CX00000337 at 246:21-
247:25, 250:12-252:5, 262:6-265:12.

RESPONSE: Admitted.

198. [REDACTED]

[REDACTED] *Id.* at 796; *see also* Houghtalin (COSCO) Dep., CX00000337 at 247:17-25 ([REDACTED]).

RESPONSE: Admitted.

199. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] *Id.* at 809–811; *see also* Houghtalin (COSCO) Dep., CX00000337 at 186:2-25 (“[REDACTED]
[REDACTED]”), 253:3-261:22 ([REDACTED]
[REDACTED]), 259:2-17 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED]
[REDACTED] [REDACTED] [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

200. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 809, 811.

RESPONSE: Denied. This SUMF describes a hypothetical that is not material, [REDACTED]
[REDACTED].

201. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 811; *see also* Houghtalin

(COSCO) Dep., CX00000337 at 259:18-261:22.

RESPONSE: Denied. This SUMF describes a hypothetical that is not material, [REDACTED]
[REDACTED].

202. [REDACTED]

[REDACTED]

[REDACTED]. *See*

July 1, 2018, COSCO/TRAC CUA, CX00002782 (Houghtalin Dep. Ex. 20) at 782, 792; *see also*

Houghtalin (COSCO) Dep., CX00000337 at 275:12-276:17.

RESPONSE: Admitted.

203. [REDACTED]

[REDACTED] *Id.* at 782; *see also* Houghtalin (COSCO) Dep., CX00000337 at 276:18-

24.

RESPONSE: Admitted.

204. Pursuant to the July 1, 2018, COSCO/TRAC CUA, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] July 1, 2018, COSCO/TRAC CUA, CX00002782 (Houghtalin Dep. Ex. 20)

at 786.

RESPONSE: Admitted.

205. [REDACTED]

[REDACTED]” CX00003037 (Houghtalin Dep. Ex. 23) at
037; *see also* Houghtalin (COSCO) Dep., CX00000337 at 298:4-16.

RESPONSE: Admitted.

206. [REDACTED]

[REDACTED] *See* April 1, 2020,
COSCO/TRAC Amendment, CX00002813 (Houghtalin Dep. Ex. 22) at 813; *see also* Houghtalin
(COSCO) Dep., CX00000337 at 290:8-291:7.

RESPONSE: Admitted.

207. [REDACTED]

[REDACTED] *Id.*; *see also*

Houghtalin (COSCO) Dep., CX00000337 at 291:20-24.

RESPONSE: Admitted.

Evergreen

208. [REDACTED]

[REDACTED]. *See*

November 28, 2016, Evergreen/TRAC PSA, CX00003550.

RESPONSE: Admitted.

209. [REDACTED]

[REDACTED]. *Id.* at 550.

RESPONSE: Denied. NY and NJ are not relevant to the scope of discovery that was agreed to by the parties and completed in advance of this stage of the litigation.

210. [REDACTED]

[REDACTED] *See* November 28, 2016, Evergreen/TRAC CUA,

CX00003532 at 532, 535.

RESPONSE: Denied. NY and NJ are not relevant to the scope of discovery that was agreed to by the parties and completed in advance of this stage of the litigation. [REDACTED]

JSOF 231.

211. [REDACTED]

[REDACTED]. *Id.* at 535.

RESPONSE: Denied. As noted above, the [REDACTED]

212. [REDACTED]

Id. at 538.

RESPONSE: Denied. NY and NJ are not relevant to the scope of discovery that was agreed to by the parties and completed in advance of this stage of the litigation. Furthermore, [REDACTED]

213. [REDACTED]

Id. at

538-39.

RESPONSE: Denied. This SUMF is not material [REDACTED]

214.

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

215.

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED].

216.

[REDACTED]. *See*

December 1, 2017 Evergreen/TRAC PSA, CX00003639.

RESPONSE: Admitted.

217.

[REDACTED]

[REDACTED]. *Id.* at 640.

RESPONSE: Admitted.

218.

[REDACTED]

[REDACTED] See December 1, 2017

Evergreen/TRAC contract, CX00003226 (Wang Dep. Ex. 11) at 226, 244.

RESPONSE: Admitted.

219.

[REDACTED]. *Id.* at 230.

RESPONSE: Admitted.

220.

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

221.

[REDACTED]

[REDACTED]

[REDACTED]

Id. at 234.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

222. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at

234-35.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

223. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

224. [REDACTED]

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

225. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See*

October 22, 2019, Evergreen/DCLI EGA CUA, CX00003784 (Wang Dep. Ex. 12) at 784, 801.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

226. [REDACTED]

[REDACTED] *Id.* at 787.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

227. [REDACTED]

[REDACTED]

[REDACTED] *See* October 22, 2019,

Evergreen/DCLI EMC Amendment No. 1, CX00003815.

RESPONSE: Admitted.

228.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 754, 771.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

229.

[REDACTED]

[REDACTED]. *Id.* at 757.

RESPONSE: Admitted.

230.

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 759.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

231.

[REDACTED]

[REDACTED] *Id.* at

775.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

232. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

233. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

234. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

235. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

236. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

237. Pursuant to the October 22, 2019, Evergreen/DCLI EMC CUA:

[REDACTED]

[REDACTED]

Id. at 760 (emphasis added).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

238.

[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

Id. at 765.

RESPONSE: Admitted.

Hapag-Lloyd

239.

[REDACTED]

[REDACTED]
[REDACTED]

See November 28, 2012,

Hapag-Lloyd/TRAC PSA, CX00004036 at 036.

RESPONSE: Admitted.

240.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. See December 21, 2012, Hapag-Lloyd/TRAC CUA, CX00004010 (Barattini Dep. Ex. 7) at 010, 021; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 103:11-18 ([REDACTED]).

RESPONSE: Admitted.

241. [REDACTED]

[REDACTED] *Id.* at 010.

RESPONSE: Admitted.

242. [REDACTED]

[REDACTED] *Id.* at

019.

RESPONSE: Admitted.

243. [REDACTED]

[REDACTED] *Id.* at 012; *see also* Barattini (Hapag-Lloyd)

(10/01/2021) Dep., CX00000654 at 104:3-15 (confirming meaning of contractual language), 105:9-18 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

244. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See Nov. 28, 2012 Hapag-Lloyd/DCLI CPA, CX00003993
at 995-96.

RESPONSE: Admitted.

245. [REDACTED]

[REDACTED] *Id.* at
996-97.

RESPONSE: Admitted.

246. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See December 21, 2012,

Hapag-Lloyd/DCLI CUA, CX00004049 at 049. “

RESPONSE: Admitted.

247. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

248. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted in part, denied in part. [REDACTED]

249. [REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

250. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 049-50.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

251. Pursuant to the December 21, 2012, Hapag-Lloyd/DCLI CUA:

[REDACTED]

Id. at 058.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

252. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 050.

RESPONSE: Admitted in part denied in part. [REDACTED]

[REDACTED]

253. [REDACTED]

[REDACTED]

[REDACTED] *d.*

RESPONSE: Admitted in part denied in part. [REDACTED]

[REDACTED]

254. [REDACTED]

[REDACTED] *Id.* at 058.

RESPONSE: Denied. [REDACTED]

255. [REDACTED]

[REDACTED] *See*

January 1, 2013, Hapag-Lloyd/Flexi-Van CUA, CX00004060 (Barattini Dep. Ex. 8) at 060.

RESPONSE: Admitted.

256. [REDACTED]

[REDACTED] *See* January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 (Barattini

Dep. Ex. 13) at 129, 142.

RESPONSE: Admitted.

257. [REDACTED]

[REDACTED] *Id.* at 129; *see also* Barattini (Hapag-Lloyd) (10/01/2021)

Dep., CX00000654 at 148:6-9 (confirming term of agreement).

RESPONSE: Admitted.

258. Pursuant to the January 1, 2016, Hapag-Lloyd/DCLI CUA:

[REDACTED]

CX00004101 (Barattini Dep. Ex. 9) at 113-14.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

259.

[REDACTED]

[REDACTED]

[REDACTED]. See 10/01/2017 Hapag-Lloyd/DCLI Amendment, CX00004086 (Barattini Dep. Ex. 10) at 086.

RESPONSE: Admitted.

260.

[REDACTED]

[REDACTED]

[REDACTED] *Id.*; see also Barattini (Hapag-Lloyd) (10/01/2021) Dep.,

CX00000654 at 128:21-129:4.

[REDACTED]

[REDACTED]

RESPONSE: Admitted.

261. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] October 1, 2017, Hapag-Lloyd/DCLI Amendment,
CX00004086 (Barattini Dep. Ex. 10) at 086; *see also* Barattini (Hapag-Lloyd) (10/01/2021)
Dep., CX00000654 at 129:5-24 ([REDACTED])

[REDACTED].

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

262. [REDACTED]

[REDACTED]

[REDACTED]. *See*

October 1, 2018 Hapag-Lloyd/DCLI CUA, CX00003894 at 894.

RESPONSE: Admitted.

263. [REDACTED]

[REDACTED]. *Id.*

RESPONSE: Admitted.

264. Pursuant to the October 1, 2018, Hapag-Lloyd/DCLI CUA:

[REDACTED]

Id. at 206.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

265. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See January 1, 2019 Hapag-Lloyd/TRAC CUA, CX00003906 (Coates Dep. Ex. 7) at 906, 922.

RESPONSE: Admitted.

266. [REDACTED]

[REDACTED] *Id.* at 906.

RESPONSE: Admitted.

267. Pursuant to the January 1, 2019, Hapag-Lloyd/TRAC CUA:

[REDACTED]

Id. at 912; *see also* CX00003893 (Barattini Dep. Ex. 21) at 893 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

HMM

268. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See June 19, 2013, HMM/DCLI CPA, CX00004382 (Compton Dep. Ex. 8) at 384.

RESPONSE: Admitted.

269. [REDACTED]. *Id.*

at 386.

RESPONSE: Admitted.

270. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

271. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See June 19, 2013, HMM/DCLI CUA, CX00004416 at 416, 423-24.

RESPONSE: Admitted.

272. [REDACTED]

[REDACTED] *Id.* at 417; *see also* CX0004382 (Compton Dep. Ex. 8) at 386.

RESPONSE: Admitted. .

273. [REDACTED]

[REDACTED] June 19,

2013 HMM/DCLI CUA, CX00004382 at 418.

RESPONSE: Denied. The contract clearly states that [REDACTED]

274. [REDACTED]

[REDACTED] CX00004350 (Compton Dep. Ex. 10) at 351-52 ([REDACTED]

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

275. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 354; *see also* Compton (HMM) Dep.,

CX00000207 at 102:5-103:4 [REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

276. [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Admitted.

277. [REDACTED]

[REDACTED] *Id.* at 373 (“[REDACTED]

[REDACTED]

[REDACTED]”)

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

278. [REDACTED]

[REDACTED]” *Id.* at

370, 372-73 (“ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

279. [REDACTED]

[REDACTED]

[REDACTED] CX00004370 (Compton Dep. Ex. 9) at 379.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

280.

” *Id.*

RESPONSE: Denied. This SUMF is not material because

281.

Id. at 380; *see also* Compton (HMM) Dep., CX00000207 at 94:23-95:14.

RESPONSE: Denied. This SUMF is not material because

282.

CX00004370 (Compton Dep. Ex. 9) at 380-

81.

RESPONSE: Denied. This SUMF is not material because

283. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

284. [REDACTED]

[REDACTED] See August 11, 2017

HMM/DCLI Amendment, CX00004329 at 329.

RESPONSE: Admitted.

285. [REDACTED]

[REDACTED]

[REDACTED] CX00004191 (Compton Dep.

Ex. 12) at 191 (“[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

286. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See November 30, 2017

HMM/DCLI CUA, CX00004191 (Compton Dep. Ex. 12) at 193, 202-03.

RESPONSE: Admitted.

287. [REDACTED]

[REDACTED] *Id.* at 194.

RESPONSE: Admitted.

288. Pursuant to the November 30, 2017 HMM/DCLI CUA:

[REDACTED]

Id. at 195; *see also* Compton (HMM) Dep., CX00000207 at 109:15-23, 110:8-14 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]”).

RESPONSE: Denied. The evidence confirms that [REDACTED]

[REDACTED]

289. Pursuant to the November 30, 2017 HMM/DCLI CUA:

[REDACTED]

Id.

RESPONSE: Admitted.

290. [REDACTED]

[REDACTED]

[REDACTED] See January 1, 2020 HMM/TRAC

CUA, CX00004208 at 208, 210.

RESPONSE: Admitted.

291. [REDACTED]

[REDACTED] *Id.* at 208.

RESPONSE: Admitted.

292. Pursuant to the January 1, 2020 HMM/TRAC CUA:

[REDACTED]

Id. at 211.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED].

Maersk

293. [REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

298. Pursuant to the January 1, 2015 Maersk/DCLI CUA:

[REDACTED]

January 1, 2015 Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 616; *see also* Weisberg (Maersk) Dep., CX00000709 at 58:20-59:5 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

299. Pursuant to the January 1, 2015 Maersk/DCLI CUA, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 621; *see also* Weisberg (Maersk) Dep., CX00000709 at 60:7–62:6

⁴ [REDACTED]

([REDACTED]
[REDACTED]
[REDACTED]
RESPONSE: Denied. This SUMF misrepresents [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

300. [REDACTED]
[REDACTED]
[REDACTED]. See March 14, 2018, Maersk/DCLI Amendment,
CX00004644 (Weisberg Dep. Ex. 6) at 644.

RESPONSE: Admitted.

301. [REDACTED]
[REDACTED] *Id.*; see also Weisberg (Maersk) Dep.,
CX00000709 at 66:12-18.

RESPONSE: Admitted.

302. [REDACTED]
[REDACTED] March 14, 2018
Maersk/DCLI Amendment, CX00004644 (Weisberg Dep. Ex. 6) at 645.

RESPONSE: Admitted.

303. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] See July 1, 2017 Maersk/TRAC
CUA, CX00004679 at 679, 682.

RESPONSE: Admitted.

304. [REDACTED]

[REDACTED] *Id.* at 679.

RESPONSE: Admitted.

305. [REDACTED] Weisberg
(Maersk) Dep., CX00000709 82:8-20.

RESPONSE: Admitted.

306. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] *Id.* at 82:23-83:6.

RESPONSE: Admitted.

307. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] See July 1, 2018 Maersk/TRAC
CUA, CX00004652 (Weisberg Dep. Ex. 9) at 653, 655.

RESPONSE: Admitted.

308. [REDACTED]

[REDACTED] *Id.* at 653.

RESPONSE: Admitted.

MSC

309. [REDACTED]

[REDACTED] See March 26, 2015 MSC/DCLI CPA,
CX00004466 (Roveccio Dep. Ex. 20) at 466; Roveccio (MSC) Dep., CX00000799 at 150:20-
151:6.

RESPONSE: Admitted.

310. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 151:7-10.

RESPONSE: Admitted.

311. [REDACTED]

[REDACTED]
[REDACTED] CX00004466 (Roveccio Dep. Ex. 20) at 468.

RESPONSE: Admitted.

312. [REDACTED]

[REDACTED] *Id.* at 469.

RESPONSE: Admitted.

313. [REDACTED]

[REDACTED]
[REDACTED] *Id.* at 470.

RESPONSE: Admitted.

314. [REDACTED]

[REDACTED] *Id.* at

471.

RESPONSE: Admitted.

315. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See Roveccio (MSC) Dep., CX00000799 at 154:5-155:6; March 26, 2015

MSC/DCLI CUA, CX00004551 (Roveccio Dep. Ex. 21) at 551, 564-66.

RESPONSE: Admitted.

316. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 553.

RESPONSE: Admitted.

317. [REDACTED] Roveccio (MSC) Dep.,

CX00000799 at 155:21-23.

RESPONSE: Admitted.

318. [REDACTED]

[REDACTED]

[REDACTED] Roveccio (MSC) Dep.,

CX00000799 at 160:22-161:6; CX00004551 (Roveccio Ex. 21) at 567-68.

RESPONSE: Admitted.

319. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id. at 567; Roveccio (MSC) Dep., CX00000799 at 160:4-21.

RESPONSE: Admitted.

320. [REDACTED]

CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

321. Under this provision,

[REDACTED]

Id.; Roveccio (MSC) Dep., CX00000799 at 162:3-163:5.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

322. [REDACTED]

[REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 162:14-163:13.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

323. [REDACTED]

[REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 163:14-21.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

324. [REDACTED]

[REDACTED] CX00004551

(Roveccio Dep. Ex. 21) at 558; *see also* Exhibit C, *id.* at 577.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

325. [REDACTED]

[REDACTED]. Roveccio (MSC) Dep., CX00000799 at 164:18-165:5; CX00004551 (Roveccio Dep.

Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

326. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 165:6-17;

CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

327. [REDACTED]

[REDACTED]

Roveccio (MSC) Dep., CX00000799 at 165:18-166:4; CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

328. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 166:5-10; CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

329. [REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at 166:11-18; CX00004551 (Roveccio Dep. Ex. 21) at 558.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

330. [REDACTED] CX00004578 (Roveccio Dep. Ex. 16) at
578 [REDACTED]

[REDACTED] Roveccio (MSC)

Dep., CX00000799 at 130:21-131:9 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF misrepresents a statement [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

ONE

331. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See March 1, 2018 ONE/TRAC CUA, CX00005466 at 466, 469.

RESPONSE: Admitted. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

332. [REDACTED]

[REDACTED] *Id.* at 466.

RESPONSE: Admitted.

333. [REDACTED]

[REDACTED]

[REDACTED] *Id.*; see also March 1, 2018 ONE/TRAC GTC,
CX00005429 (Armstrong Dep. Ex. 5).

RESPONSE: Admitted.

334. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005429 (Armstrong Dep. Ex. 5) at 433.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

335. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

336. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

337. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

338. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

339. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

340. [REDACTED]

[REDACTED]

[REDACTED] CX00005414 at 414; *see also* CX00005440 at 442 ([REDACTED]

[REDACTED]).

RESPONSE: Admitted.

341. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005440 at 442 ([REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied.

IMCC describes a proposal by a non-party which should not be agreed to as fact in the absence of that party. Furthermore, this statement is not relevant on account of the fact that [REDACTED]

[REDACTED]

[REDACTED]

342. [REDACTED]

[REDACTED] CX00005445 at 445-47 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

343. [REDACTED]

[REDACTED]. See June 1, 2020 ONE/TRAC amendment, CX00005396 at 396.

RESPONSE: Admitted.

344. [REDACTED]

[REDACTED] *Id.* at 396, 399.

RESPONSE: Admitted.

345. [REDACTED]

[REDACTED] *Id.* at 396.

RESPONSE: Admitted.

346. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] See June 1, 2020 ONE/FLVI CUPA, CX00005382 (Armstrong Dep. Ex. 11) at 382.

RESPONSE: Admitted.

Wan Hai

347. [REDACTED]

[REDACTED]

[REDACTED] See February 1, 2016

Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 777.

RESPONSE: Admitted.

348. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

349. [REDACTED]

[REDACTED] See

February 1, 2017 Wan Hai/TRAC Amendment, CX00005803 (Chung Dep. Ex. 6) at 803.

RESPONSE: Admitted.

350. [REDACTED]

[REDACTED] *Id.*; Chung (Wan Hai) Dep.,

CX00000304 at 64:24-65:3.

RESPONSE: Admitted.

351. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005803 (Chung Dep. Ex. 6) at 804.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

352.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. *Id.* at 806; Chung (Wan Hai) Dep., CX00000304 at 66:23-67:19 [REDACTED]
[REDACTED]
[REDACTED].

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED].

353. [REDACTED] Chung (Wan
Hai) Dep., CX00000304 at 66:5-8.

RESPONSE: Admitted.

354.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] See April 1, 2020 Wan Hai/TRAC CUA, CX00005789 (Chung Dep.
Ex. 7) at 789, 798.

RESPONSE: Admitted.

355. [REDACTED]

[REDACTED] *Id.* at 789; Chung (Wan Hai) Dep., CX00000304 at 74:20-75:8.

RESPONSE: Admitted.

356. [REDACTED]

[REDACTED] CX00005789 (Chung Dep. Ex. 7) at 811; Chung (Wan Hai) Dep., CX00000304 at 75:24-76:6 ([REDACTED])

RESPONSE: Denied. This SUMF is not supported by the cited testimony.

357. [REDACTED]

[REDACTED] *See* July 1, 2021 Wan Hai/TRAC Amendment, CX00005771 (Chung Dep. Ex. 8) at 771.

RESPONSE: Admitted.

358. [REDACTED]

[REDACTED] *Id.* at 773; Chung (Wan Hai) Dep., CX00000304 at 77:18-78:16.

RESPONSE: Admitted.

Yang Ming

359. [REDACTED]

[REDACTED] *See* October 1, 2013 Yang Ming/TRAC CUA, CX00006027 (Micena Dep. Ex. 13) at 027; *see also* Micena (Yang Ming) Dep., CX00000001 at

191:14-193:25.

RESPONSE: Admitted.

360. [REDACTED]

[REDACTED] CX00006027 (Micena Dep. Ex. 13) at 027; *see also* Micena (Yang Ming) Dep., CX000000001 at 194:2-10.

RESPONSE: Admitted.

361. [REDACTED]

[REDACTED] CX00006027 (Micena Dep. Ex. 13) at 035-36; *see also* Micena (Yang Ming) Dep., CX000000001 at 205:21-212:23, 226:11-16 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

362. [REDACTED]

[REDACTED] CX00006027 (Micena Dep. Ex. 13) at 035; *see also* Micena (Yang Ming) Dep., CX000000001 at 205:21-211:19 ([REDACTED])

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

363. [REDACTED]

[REDACTED]

[REDACTED]. See May 1, 2014 Yang Ming/TRAC COCP
CUA, CX00006013 (Micena Dep. Ex. 14) at 013; *see also* Micena (Yang Ming) Dep.,
CX00000001 at 216:3-218:9.

RESPONSE: Admitted.

364. [REDACTED]

[REDACTED] CX00006013 (Micena Dep. Ex. 14) at 013; *see also* Micena (Yang
Ming) Dep., CX00000001 at 218:10-19.

RESPONSE: Admitted.

365. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00006013 (Micena Dep. Ex. 14) at 022; *see also* Micena (Yang Ming) Dep., CX000000001 at 223:3-224:16, 226:5-10, 228:10-20 ([REDACTED])

[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

366. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] CX00006013 (Micena Dep. Ex. 14) at 022; *see also* Micena (Yang Ming) Dep., CX000000001 at 228:21-229:22.

RESPONSE: Denied. This SUMF is not material because [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

367. [REDACTED]

[REDACTED]

[REDACTED] See May 1,

2014 Yang Ming/TRAC LABP CUA, CX00005987 (Micena Dep. Ex. 28) at 987; *see also*

Micena (Yang Ming) Dep., CX00000001 at 388:5-390:10.

RESPONSE: Admitted.

368. [REDACTED]

[REDACTED] CX00005987 (Micena Dep. Ex. 28) at 987.

RESPONSE: Admitted.

369. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 996.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

⁷ [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

370. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*; *see also* CX00005922

(Micena Dep. Ex. 15) at 922-23 [REDACTED]

[REDACTED]

[REDACTED] *see*

also Micena (Yang Ming) Dep., CX00000001 at 245:8-246:13, 393:5-396:11 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

371. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See January 1, 2017 Yang Ming/TRAC CUA, CX00005859
(Micena Dep. Ex. 18) at 859, 871; *see also* Micena (Yang Ming) Dep., CX00000001 at 277:10-
278:11 ([REDACTED]).

RESPONSE: Admitted.

372. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00005859 (Micena Dep. Ex. 18) at 859–60, 872–85; *see also* Micena (Yang Ming) Dep.,
CX00000001 at 278:12-279:15.

RESPONSE: Admitted.

373. [REDACTED]

[REDACTED] *Id.* at 881–82.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

374. [REDACTED]

[REDACTED]. *See*
February 1, 2018 Yang Ming/TRAC amendment. CX00005808 (Micena Dep. Ex. 19) at 820.

RESPONSE: Admitted.

375. [REDACTED]

[REDACTED] *Id.* at
822–23.

RESPONSE: Denied. This SUMF misrepresents [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

376. [REDACTED]

[REDACTED] *See* January

1, 2019 Yang Ming/TRAC amendment, CX00005940 (Micena Dep. Ex. 20) at 940.

RESPONSE: Admitted.

377. [REDACTED]

[REDACTED]

[REDACTED] CX00005935 (Micena Dep. Ex. 22) at 935.

RESPONSE: Admitted.

378. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

379. [REDACTED]

[REDACTED]. *Id.* at 936.

RESPONSE: Admitted.

380. [REDACTED]

[REDACTED] *Id.* at 939.

RESPONSE: Denied. This SUMF misrepresents [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

381.

Id. at 937; *see also* Micena (Yang Ming) Dep., CX00000001 at 189:2-190:22, 322:8-324:18, 325:23-326:4

RESPONSE: Denied. This SUMF is not material because

382.

CX00005901 (Micena Dep. Ex. 8) at 904; *see also* Micena (Yang Ming) Dep., CX00000001 at 329:13-331:6

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

ZIM

383.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] See March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18)
at 040, 043; Messing (ZIM) Dep., CX00000260 at 138:16-139:11.

RESPONSE: Admitted.

384.

[REDACTED]
[REDACTED]

[REDACTED]

See March 1, 2016 ZIM/TRAC

CUA, CX00006040 (Messing Dep. Ex. 18) at 040, 044-70.

RESPONSE: Admitted.

385.

[REDACTED]

[REDACTED]

Id. at 040-41.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

386.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id.; Messing (ZIM) Dep., CX00000260 at

152:7-153:14.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

387. Pursuant to the March 1, 2016 ZIM/TRAC CUA MH Incentive Provision:

[REDACTED]

March 1, 2016 ZIM/TRAC CUA, CX00006040 (Messing Dep. Ex. 18) at 040-41; Messing (ZIM) Dep., CX00000260 at 152:7-153:14.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

388.

[REDACTED]

[REDACTED]

See September 1, 2017

ZIM/TRAC amendment, CX00006100 (Messing Dep. Ex. 19) at 100; Messing (ZIM) Dep., CX00000260 at 161:3-19.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

389.

[REDACTED]

[REDACTED] CX00006100 (Messing Dep. Ex. 19) at 102, 104;
Messing (ZIM) Dep., CX00000260 at 164:5-8; *see also* CX00006040 (Messing Dep. Ex. 18) at
040, 043.

RESPONSE: Admitted.

390.

[REDACTED]

[REDACTED] CX00006100 (Messing
Dep. Ex. 19) at 100.

RESPONSE: Admitted.

391.

[REDACTED]

[REDACTED]

[REDACTED]

Id.; Messing (ZIM) Dep., CX00000260 at 165:15-168:16.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

392. [REDACTED]

[REDACTED]

[REDACTED]

CX00006100 (Messing Dep. Ex. 19) at 100; Messing (ZIM) Dep., CX00000260 at 166:11-16.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

393. Since at least 2012, Respondent ocean carriers have entered into agreements designating the IEP as the exclusive provider of chassis for CH movements and forbidding the ocean carrier from paying any other IEP for chassis. [REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

394. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

395. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Langenfeld Initial Expert Report at ¶ 71.

RESPONSE: Denied. This SUMF is contradicted by ocean carrier Respondents' experts: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CMA

396. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See*

January 1, 2017 CMA/TRAC CUA, CX00002586 (Fentress Dep. Ex. 16) at 589.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

397. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] December 3, 2019 CMA/TRAC CUA, CX00002536 (Fentress Dep. Ex. 19) at 539.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

398. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

399. [REDACTED]

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

400. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is material because [REDACTED]

[REDACTED]

[REDACTED]

COSCO

401. Pursuant to the May 1, 2016 COSCO/TRAC CUA:

[REDACTED]

CX00003121 (Houghtalin Dep. Ex. 12) at 123

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

402. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

403. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

404. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

405.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

406.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

407.

[REDACTED]

[REDACTED]

[REDACTED]

CX00002782 (Houghtalin

Dep. Ex. 20) at 784.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

408.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

409. Pursuant to the July 1, 2018 COSCO/TRAC CUA:

[REDACTED]

Id. at 785.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

410.

[REDACTED]

[REDACTED] See July 1, 2021 COSCO/TRAC CUA, CX00003082 (Houghtalin Dep. Ex. 25) at 082, 092; *see also* Houghtalin (COSCO) Dep., CX00000337 at 323:17-324:13.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

411.

[REDACTED] CX00003082 (Houghtalin Dep. Ex. 25) at 082; *see also* Houghtalin (COSCO) Dep., CX00000337 at 325:9-13.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

412.

CX00003082 (Houghtalin Dep. Ex. 25) at 082.

RESPONSE: Denied.

413.

Id. at 082, 092.

RESPONSE: Denied.

414.

Id.

RESPONSE: Denied. This SUMF is not material because

Evergreen

415.

November 28, 2016

Evergreen/TRAC CUA, CX00003532 (Wang Dep. Ex. 11) at 539.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

416. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

417. [REDACTED]

[REDACTED]

[REDACTED] December 1, 2017 Evergreen/TRAC

contract, CX00003226 at 237.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

418. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

419. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at

759.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

420.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

421. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 760.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

422.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

423.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

424.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Hapag-Lloyd

425. [REDACTED]

[REDACTED]

[REDACTED] December 21, 2012 Hapag-Lloyd/TRAC CUA, CX00004010

(Barattini Dep. Ex. 7) at 010.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

426. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 010-11.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

427. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

428. Pursuant to the December 21, 2012, Hapag-Lloyd/DCLI CUA:

[REDACTED]

December 21, 2012 Hapag-Lloyd/DCLI CUA, CX00004049 at 051.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

429. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

430. [REDACTED]

[REDACTED]

[REDACTED] January 1, 2016 Hapag-Lloyd/TRAC CUA,
CX00004115 (Barattini Dep. Ex. 13) at 129; *see also* Barattini (Hapag-Lloyd) (10/01/2021)
Dep., CX00000654 at 149:16-150:10 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

431. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004115 (Barattini Dep. Ex. 13) at 129-30.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

432. Pursuant to the January 1, 2016, Hapag-Lloyd/TRAC CUA:

[REDACTED]

Id. at 031; *see also* Barattini Dep. (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 151:11-152:8 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

433. [REDACTED]

[REDACTED]

[REDACTED] CX00004115 (Barattini Dep. Ex. 13) at 031.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

434.

[REDACTED]

[REDACTED] See January 1, 2016 Hapag-Lloyd/DCLI CUA,
CX00004101 (Barattini Dep. Ex. 9) at 101.

RESPONSE: Admitted.

435.

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

436. Pursuant to the January 1, 2016, Hapag-Lloyd/DCLI CUA:

[REDACTED]

[REDACTED]

Id. at 103; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 123:7-124:19

([REDACTED]).

RESPONSE: Denied. .

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

437. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] January 1, 2016 Hapag-Lloyd/DCLI CUA, CX00004101 (Barattini Dep. Ex. 9) at 103.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

438. Pursuant to the October 1, 2018, Hapag-Lloyd/DCLI CUA:

[REDACTED]

October 1, 2018 Hapag-Lloyd/DCLI CUA, CX00003894 at 896.

RESPONSE: Denied. [REDACTED]

[REDACTED]

439. [REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

440.

[REDACTED]

[REDACTED]

[REDACTED] January 1, 2019 Hapag-Lloyd/TRAC CUA,
CX00003906 (Coates Dep. Ex. 7) at 906, 922.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

441.

Id. at 907.

RESPONSE: Denied. This SUMF is not material because

442. Pursuant to the January 1, 2019, Hapag-Lloyd/TRAC CUA:

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

443.

[REDACTED]

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

HMM

444.

[REDACTED]

CX00004382

(Compton Dep. Ex. 8) at 416.

RESPONSE: Admitted.

445. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

446. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 417.

RESPONSE: Admitted.

447. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 417, 423.

RESPONSE: Admitted.

448. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 418.

RESPONSE: Admitted.

449.

Id. at 419.

RESPONSE: Admitted.

450.

November 30, 2017 HMM/DCLI CUA, CX00004191 (Compton Dep.

Ex. 12) at 191.

RESPONSE: Admitted.

451.

Id.

RESPONSE: Admitted.

452.

Id.

RESPONSE: Admitted.

453. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at 192.

RESPONSE: Admitted.

454. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

455. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 194.

RESPONSE: Admitted.

456. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

Maersk

457. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] January

1, 2015 Maersk/DCLI CUA, CX00004613 (Weisberg Dep. Ex. 5) at 620; *see also* Weisberg (Maersk) Dep., CX00000709 at 59:9-21 ([REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

458. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004613 (Weisberg Dep. Ex. 5) at 620; *see also* Weisberg (Maersk) Dep.,

CX00000709 at 59:22-60:3 ([REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

459. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] March 14, 2018

Maersk/DCLI Amendment, CX00004644 (Weisberg Dep. Ex. 6) at 646.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

8 [REDACTED]

MSC

460. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004551 (Roveccio Ex. 21) at 554; Roveccio (MSC) Dep., CX00000799 at 157:7-19.

RESPONSE: Denied. This SUMF is not material because: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

461. [REDACTED]

[REDACTED]

[REDACTED] Roveccio (MSC) Dep., CX00000799 at

180:15-19.

RESPONSE: Denied. This SUMF is not material because:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

462.

[REDACTED]

[REDACTED]

[REDACTED]

CX00004551 (Roveccio Ex.

21) at 554.

RESPONSE: Denied. This SUMF is not material because:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

463.

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

464. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*; Roveccio (MSC) Dep., CX00000799 at 157:22-158:17.

RESPONSE: Denied. This SUMF is not material because: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

ONE

465. Pursuant to the March 1, 2018 ONE/TRAC GTC:

[REDACTED]

CX00005429 (Armstrong (10/06/2021) Dep. Ex. 5) at 434.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

466. Pursuant to the March 1, 2018 ONE/TRAC GTC:

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

467.

[REDACTED]

[REDACTED]

[REDACTED]

CX00005382 (Armstrong (10/06/2021) Dep. Ex. 11) at 383.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

468. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Wan Hai

469. Pursuant to the February 1, 2016 Wan Hai/TRAC CUA:

[REDACTED]

February 1, 2016 Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 778; Chung (Wan Hai) Dep., CX00000304 at 63:7-25.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

470. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Yang Ming

471. [REDACTED]

[REDACTED]

[REDACTED] CX00006027 (Micena Dep. Ex. 13) at 031.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

472. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

473.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

474. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

475. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

476. [REDACTED]

[REDACTED]

[REDACTED] CX00006013 (Micena Dep. Ex. 11) at 017.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

477. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

478.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

479.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 018.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

480.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

481. [REDACTED]

[REDACTED]

[REDACTED] May 1, 2014 Yang Ming/TRAC LABP CUA,
CX00005987 (Micena Dep. Ex. 28) at 992.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

482. [REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

483.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

484. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

485. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

486. Pursuant to the January 1, 2017 Yang Ming/TRAC CUA:

[REDACTED]

January 1, 2017 Yang Ming/TRAC CUA, CX00005859 (Micena Dep. Ex. 18) at 864.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

487. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See January 1, 2020 Yang Ming/TRAC CUA, CX00005832 (Micena Dep. Ex. 25) at

832, 843; *see also* Micena (Yang Ming) Dep., CX00000001 at 344:17-345:13.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

488. [REDACTED]

[REDACTED]

[REDACTED] January 1,

2020 Yang Ming/TRAC CUA, CX00005832 (Micena Dep. Ex. 25) at 832-33.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

489. Pursuant to the January 1, 2020 Yang Ming/TRAC CUA:

[REDACTED]

Id. at 837.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

ZIM

490.

[REDACTED]

[REDACTED] March 1, 2016 ZIM/TRAC

CUA, CX00006040 (Messing Dep. Ex. 18) at 072; Messing (ZIM) Dep., CX00000260 at 156:7-

14.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

491.

[REDACTED]

[REDACTED] March 1, 2016 ZIM/TRAC CUA, CX00006040

(Messing Dep. Ex. 18) at 072.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

492. Pursuant to the March 1, 2016 ZIM/TRAC CUA:

[REDACTED]

Id. at 073; Messing (ZIM) Dep., CX00000260 at 157:5-158:13.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

493.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] March 1, 2016 ZIM/TRAC CUA, ,

CX00006040 (Messing Dep. Ex. 18) at 073.

RESPONSE: Denied. This SUMF is not material because

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

494. [REDACTED]

[REDACTED]

Id.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

495. Ocean carriers' contracts with IEPs for the provision of chassis to cover ocean carriers' CH movements frequently offer CH pricing terms that are explicitly linked to the ocean carriers' MH volume. [REDACTED]; *see also supra*, Section IV.A.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

496. CH pricing terms [REDACTED] have been linked to the ocean carriers' MH volume in the following ways:

- Providing for the renegotiation or direct increase of pricing terms if the ocean carriers' MH volume decreases, or the renegotiation or direct decrease of pricing terms if the ocean carriers' MH volume increases. *See supra* at ¶¶ [REDACTED]
- Providing for a direct payment from the IEP to the ocean carrier based on the ocean carriers' MH volume. *See supra* at ¶¶ [REDACTED]

- Providing for incremental revenue sharing based on MH volume. *See supra* at ¶¶ [REDACTED]
[REDACTED]
- Conditioning a discount on the CH rate on the ocean carriers' maintaining a specified MH volume. *See supra* at ¶¶ [REDACTED]
- Providing for the termination of the contract based on MH volume. *See supra* at ¶ [REDACTED]
- Including a term requiring the ocean carrier actively to try to generate more MH volume. *See supra* at ¶ [REDACTED]
- Setting the MH pricing in the contract. *See supra* at ¶ [REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of each material fact (Initial Order, ¶15) and the statements are conclusory and argumentative. Respondents furthermore deny this SUMF based on the following: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

497.

[REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial
Expert Report, CX00001266 at ¶ 69.

RESPONSE: Denied. This statement is conclusory and speculative because it refers to a
hypothetical opportunity without any evidence that it either existed or was acted upon by any of
the ocean carrier Respondents. Furthermore, the evidence confirms that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

498.

[REDACTED]

[REDACTED] *Id.* at ¶

70.

RESPONSE: Denied. The evidence shows that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

APP2017-73).

499.

[REDACTED]

[REDACTED] *See* June 2019

Maersk Slide deck (Weisberg Dep. Ex. 19), CX00004610 at 610 [REDACTED]

[REDACTED]

[REDACTED]; *see also* Weisberg (Maersk) Dep., CX00000709 at 148:20-149:6 ([REDACTED])

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

500. Indeed, [REDACTED]

[REDACTED]

[REDACTED] *See*

CX00004610 (Weisberg Dep. Ex. 19) at 612 ([REDACTED])

[REDACTED]

RESPONSE: Denied. This SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

501.

(emphasis in original);

see also Weisberg (Maersk) Dep., CX00000709 at 153:24 -154:9

; Weisberg (Maersk) Dep. CX0000709 at 154:24-25.

RESPONSE: Denied. This SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that

502.

See CX00004610 (Weisberg Dep. Ex. 19) at 611

); see also Weisberg (Maersk) Dep., CX00000709 at 149:14-150:18 (

RESPONSE: Denied. This SUMF is incomprehensible. Without prejudice, there is nothing in

the referenced exhibit supports this SUMF. And, as stated in previous responses, this SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

503. [REDACTED]

[REDACTED] See CX00004610 (Weisberg Dep. Ex. 19) at 612 [REDACTED]
[REDACTED]
[REDACTED]; Weisberg Dep., CX00000709 at 158:15-159:4 [REDACTED]
[REDACTED].

RESPONSE: Denied. This SUMF is incomprehensible. Without prejudice, there is nothing in the referenced exhibit that supports this SUMF. And, as stated in previous responses, this SUMF relies upon a draft document from which informational details are missing; further, there is no evidence that [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

504. [REDACTED]

[REDACTED]
[REDACTED]

[REDACTED] See Oct. 28, 2020 Maersk Notes from DCLI Meeting, CX00004673

(Weisberg Dep. Ex. 21) at 674-75.

RESPONSE: Denied. This SUMF is conclusory, insofar as it speculates about the intent of a non-party and should accordingly not be construed as a contested fact

505. [REDACTED]

[REDACTED] Nov. 5, 2015 Email from Brian Doyle (CMA), CX00002746 at 746.

RESPONSE: Denied. This SUMF is conclusory, insofar as it speculates about the meaning of an abbreviated phrase in an email, about which there was no testimony. Without more, it is unclear what is being described or what effect it had, if any, on the eventual determination of the a chassis provider.

506. [REDACTED]

[REDACTED] Aug. 13, 2019 Email from Bill Shea (DCLI) to Ed Aldridge (CMA/APL), CX00002654 at 657.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED] Furthermore, the assertions in this SUMF are based upon an email from a non-party to this litigation and should not be admitted absent testimony from the author.

507. [REDACTED]

[REDACTED] Aug. 15, 2019 Email from John Mizarek (Flexi-Van) to Robert Cannizzaro (CMA), CX00002732 at 733.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED] Furthermore, the assertions in this SUMF are based upon an email from a non-party to this litigation and should not be admitted absent testimony from the author.

508. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]. Furthermore, the assertions in this SUMF are based upon an email from a non-party to this litigation and should not be admitted absent testimony from the author.

509. [REDACTED]

[REDACTED]

[REDACTED] CX00002580

(Fentress Dep. Ex. 21) at 580 ([REDACTED])

[REDACTED]

[REDACTED]); *see also* Fentress

(CMA) Dep., CX00000916 at 227:5-16.

RESPONSE: Denied. This SUMF is not material because there is no evidence that [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

510. [REDACTED]

[REDACTED]

[REDACTED] CX00002870 (Houghtalin Dep. Ex. 24) at 872; *see also* Houghtalin (COSCO) Dep., CX00000337 at 307:3-9 [REDACTED]

[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material because there is no evidence that [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

511. [REDACTED]

[REDACTED]

CX00002870 (Houghtalin Dep. Ex. 24) at 872; *see also* Houghtalin (COSCO) Dep.,

CX00000337 at 307:10-308:28 ([REDACTED])

[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material because there is no evidence that [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

512. [REDACTED]

[REDACTED]

[REDACTED] Aug. 13, 2015 Email from Tom Wang (Evergreen) to Robert L.T. Tan (Evergreen), CX00003307 (Wang Dep. Ex. 7) at 309.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

513. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00004084

(Barattini Dep. Ex. 11) at 084.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

514.

[REDACTED] Sept. 18, 2019 Email from Bill Shea (DCLI) to Robert Milazzo (MSC), CX00004546 (Roveccio Dep. Ex. 28) at 547.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

515.

[REDACTED]
10/07/18 Email from Ronald Armstrong (ONE) to Dave Daly (ONE), CX00005418 (Armstrong Dep. Ex. 2) at 418.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

516.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] X00005422 (Armstrong Dep. Ex. 7) at 425-26; *see also* Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 85:8-12 ([REDACTED])

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

517. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]” CX00005406 (Armstrong Dep.

Ex. 4) at 412.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

518. Flexi-Van’s [REDACTED]

[REDACTED]

[REDACTED] *Id.*; see also

Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 70:2-71:3 [REDACTED]

[REDACTED]), 69:19-74:1.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]

[REDACTED]

519. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005893 (Micena
Dep. Ex. 23) at 893; *see also* Micena (Yang Ming) Dep., CX00000001 at 333:25-334:4 [REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

520. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] CX00006125 at 130.

RESPONSE: Denied. This SUMF is not material because [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

521. Respondents' industry expert stated that [REDACTED]

[REDACTED] Coates Initial

Expert Report, CX00001524 at 539.

RESPONSE: Admitted.

522. [REDACTED]

[REDACTED]

[REDACTED] Coates Dep., CX00000871 at

152:9-17 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]; *see also* June 5, 2020 Email from

James Ford-Hutchinson (Flexport) to Daewon Kim (HMM), CX00004245 (Compton Dep. Ex.

18) at 250 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial

Order. Furthermore, the SUMF misrepresents the cited evidence because [REDACTED]

[REDACTED]

[REDACTED]

523.

[REDACTED] Coates Dep., CX00000871 at 169:10-

170:5

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of interoperable pools and inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

524.

[REDACTED] CX00002713 (Fentress Dep. Ex. 20) at 719; Fentress (CMA) Dep., CX00000916 at 222:17-223:24 (“[REDACTED]”

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of interoperable pools and inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

525. [REDACTED] Langenfeld
Initial Expert Report, CX00001266 at ¶ 93, Exs. 1-2.

RESPONSE: Denied. This SUMF is conclusory and too general to be admitted as a material fact. Further, this assertion ignores who is paying the chassis usage charge, what types of chassis are being paid for, where the chassis are located, when these chassis are being procured, and why the prices may have increased.

526. [REDACTED]

[REDACTED] *Id.* at ¶ 58, Ex. 1A;

Intermodal Cartage Chassis Reports, CX00004463 (2017), CX00004464 (2018), CX00004465 (2019), CX00004459 (2020).

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

527. [REDACTED]

[REDACTED] *Id.* at ¶ 58, Ex. 1B; Evans

Delivery Chassis Reports, CX00003155-206 (Jan. 2017 – Dec. 2020).

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

When questioned about Evans’s documents including spreadsheets with data related to chassis provisioning, [REDACTED] [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

528. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶59, Exs. 2A-2B.

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

529. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 60; CX00004936 at 960.

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

530. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 60, n.89.

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

Further, available evidence confirms that NACPC prices have increased rather than stayed “[REDACTED]” since its establishment, and sufficient information about now NACPC, a non-party despite the interests held by various IMCC members, has not been entered into the record to confirm this fact. (See NACPC Pricing at <https://web.archive.org/web/20170316095204/https://www.nacpc.org/pricing/> as compared to NACPC’s present pricing available at [nacpc.org/pricing](https://www.nacpc.org/pricing/)).

531. [REDACTED]

[REDACTED] *Id.* at ¶ 60; CX00003843 (Manning Dep. Ex. 22) at 843.

RESPONSE: Denied. This SUMF is conclusory and is not supported by admissible evidence.

The entity best positioned to confirm the rates would be an administrator at SACP or the IEPs that determine the prices, and the Respondents are not positioned to evaluate this assertion. Furthermore, it appears that IMCC is referring to [REDACTED] from the evidence cited, and [REDACTED], a non-party, is best suited to determine whether this rate is accurate as represented.

532. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶103; *see also* CX00004936 at 960.

RESPONSE: Denied. This SUMF is conclusory and not supported by the evidence. NACPC maintained “subscriber” and “non-subscriber” rates on its website. (*See* NACPC Pricing at <https://web.archive.org/web/20170316095204/https://www.nacpc.org/pricing/>). NACPC is not a party to this proceeding, so the Respondents are not positioned to evaluate this assertion.

533. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶103; *see also id.*

RESPONSE: Denied. This SUMF is conclusory and not supported by the evidence. On April 28, 2018, NACPC’s SACP rates are \$12 for an unspecified group, \$13 for its “MH Rate” and \$20 for its “Non-Subscriber Rate.” (*See* Web Archive at <https://web.archive.org/web/20180428181331/https://www.nacpc.org/pricing/>). NACPC is not a party to this proceeding, so the Respondents are not positioned to evaluate this assertion.

534. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 61.

RESPONSE: Denied. This SUMF is conclusory, since NACPC is not a party to this proceeding, the Respondents are not positioned to evaluate this assertion further.

535. [REDACTED]

[REDACTED] *Id.* at ¶ 93, Exs. 10A-10D; *see also id.*, Exs. 11A-11C

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF is conclusory and, since it relates to multiple chassis usage agreements contracts of eleven ocean carrier Respondents over a five year period, does not contain a concise statement of each material fact (Initial Order, ¶15).

536. [REDACTED]

Id. at ¶ 88–89, 97, Ex. 9.

RESPONSE: Denied. This SUMF is conclusory. *See also,* [REDACTED]

[REDACTED]

537. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶ 89, Ex. 9.

RESPONSE: Denied. This SUMF is conclusory. *See also,* [REDACTED]

[REDACTED]

538. [REDACTED]

[REDACTED] “The Chassis ‘CHOICE’

Dilemma” Presentation, CX00002160 (Wilson Dep. Ex. 10) at 161.

RESPONSE: Denied. This SUMF is conclusory. *See also,* [REDACTED]

[REDACTED]. Further, the assertion therein does not consider

[REDACTED]

[REDACTED]

[REDACTED]

539. Supply chain members, including shippers and motor carriers, have complained about being charged higher prices for chassis provision. Langenfeld Initial Expert Report,

CX00001266 at ¶ 104; *see also* CX00002436 (Wilson Dep. Ex. 9) at 438 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]; CX00004878

(Wilson Dep. Ex. 6) at 878 (“[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF is conclusory. Further, there has been no evidence adduced that [REDACTED]. *See also*, [REDACTED]

[REDACTED].

540. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 86.

RESPONSE: Denied. This SUMF is conclusory. Furthermore, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

541. For example, [REDACTED]

[REDACTED] *Id.*; see also Apr. 8, 2020

Email from Alan Schmid (TRAC) to Chris Giltz (Evans), CX00003220 at 222 ([REDACTED])

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF is conclusory and requires Respondents to speculate regarding the negotiations between two entities which are not parties.

542. [REDACTED]

[REDACTED] Langenfeld

Initial Expert Report, CX00001266 ¶ 87; CX00002765 (Fehribach Dep. Ex. 3) at 766-77

([REDACTED])
[REDACTED]).

RESPONSE: Denied. This SUMF is conclusory and requires Respondents to speculate regarding the negotiations between two entities which are not parties.

543. [REDACTED]

[REDACTED]

[REDACTED]

Langenfeld Initial Expert Report, CX00001266 at ¶ 87; DCLI Preferred Pricing Agreement, CX00002757 at 757-58 ([REDACTED])

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF is conclusory and requires Respondents to speculate regarding the negotiations between two entities which are not parties.

544. [REDACTED]

[REDACTED] Langenfeld Initial Report, CX00001266 at ¶ 90; *see also* May 7, 2019 CCE Board Meeting Presentation, CX00002441 at 445 [REDACTED]
[REDACTED]
[REDACTED]; Oct. 23, 2018 CCE Board Meeting Presentation, CX00005010 at 056 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is conclusory and does not contain a concise statement of each material fact (Initial Order, ¶15), insofar as it combines opinion from IMCC’s expert and estimates. *See also*, Rebuttal Report of Dr. James Reitzes, CX00001625; and Reitzes Declaration, APP2226.

CMA

545. [REDACTED]

[REDACTED]. *See* “DCLI Open Choice Process” presentation (June 8, 2016) directed to CCM, CX00002482 at 484; *see also* Oct. 30, 2015 DCLI Response to CMA’s Request for Proposal, CX00002736 (Fentress Dep. Ex. 13) at 740 ([REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, [REDACTED]
[REDACTED]

546.

[REDACTED]. Fentress (CMA) Dep.,

CX00000916 at 171:4-20; CX00002621 at 623 [REDACTED]

“CCM Board Meeting” (May 18, 2016), CX00002510 at 510 ([REDACTED])

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and statements about [REDACTED] are conclusory.

547.

[REDACTED] See January 1, 2017 CMA/TRAC

CUA, CX00002586 (Fentress Dep. Ex. 16) at 618 ([REDACTED])

[REDACTED]); *see also* Fentress

(CMA) Dep., CX00000916 at 184:16-185:8 ([REDACTED])

[REDACTED]

[REDACTED]).

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. [REDACTED]

[REDACTED] Furthermore, the testimony cited does not support the assertions therein.

548. [REDACTED]

[REDACTED]
[REDACTED] “CCM Board Meeting” (Sept. 23, 2016), CX00002498 at 509.

RESPONSE: Denied. This SUMF is conclusory. [REDACTED]

549. [REDACTED]

See CX00002495 at 496 ([REDACTED]
[REDACTED]); *see also* “CCM Board Meeting” (May 18, 2016) CX00002510 at 510 ([REDACTED]
[REDACTED]).

RESPONSE: Denied. This SUMF is conclusory. Furthermore, [REDACTED]

550. [REDACTED]

[REDACTED] CX00002586 (Fentress Dep. Ex. 16) at 589, 602-08 ([REDACTED])

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. [REDACTED]

551. [REDACTED]

[REDACTED] CX00002536 (Fentress Dep. Ex. 19) at 540.

RESPONSE: Denied. This SUMF is conclusory. Furthermore, [REDACTED]

552. [REDACTED]

[REDACTED] Fentress (CMA)

Dep., CX00000916 at 218:10-219:7 ([REDACTED])

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and is conclusory. Furthermore, [REDACTED]

553. [REDACTED]

[REDACTED] CX00002533

(Basila Dep. Ex. 1) at 533-34 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: This SUMF contains multiple statements in violation of ¶15 of the Initial Order and is conclusory. Furthermore, [REDACTED]

[REDACTED]

In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation. Finally, to the extent that a chassis usage agreement was executed between CMA and TRAC, the agreement speaks for itself.

554. [REDACTED]

[REDACTED] Basila (CMA) Dep., CX00000534 at 14:12-16:15. [REDACTED]

RESPONSE: This SUMF contains multiple statements in violation of ¶15 of the Initial Order and is conclusory. Further, this SUMF is speculative to the extent it asserts what might take place in the future and is inadmissible.

COSCO

555. [REDACTED]

[REDACTED] Houghtalin (COSCO) Dep., CX00000337 at 188:22-189:2; *see also* July 1, 2018 COSCO/DCLI CUA, CX00002796 (Houghtalin Dep. Ex. 16) at 796, 798, 808; “COSCO SS List_v2”, CX00003117 (Houghtalin Dep. Ex. 17); Houghtalin (COSCO) Dep., CX00000337 at 246:21-247:25 ([REDACTED]), 262:6-265:12 ([REDACTED])

RESPONSE: Admitted.

556. [REDACTED]

[REDACTED]

[REDACTED] See Houghtalin (COSCO) Dep., CX00000337 at 265:6-12 (“ [REDACTED]

[REDACTED]

[REDACTED]), 317:2-7 ([REDACTED]

[REDACTED]

[REDACTED]); *see also* CX00002851

(Houghtalin Dep. Ex. 18) at 851 ([REDACTED]), 861 ([REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and is conclusory . In addition, this SUMF concerns locations outside the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation. Finally, the chassis usage agreement between [REDACTED] speaks for itself.

557. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00003143 (Houghtalin Dep. Ex. 25) at 144; *see also* Houghtalin (COSCO) Dep.,

CX00000337 at 326:17-23 [REDACTED]

[REDACTED]

[REDACTED], 332:10-

333:2 ([REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, this SUMF is conclusory and speculative to the extent it asserts what might take place in the future and is inadmissible.

558. In its Answers to IMCC's First Set of Interrogatories, dated June 14, 2021, COSCO responded to Interrogatory No. 4 that [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This is an incomplete assertion as to information provided in the Answer given by COSCO to Interrogatory No. 4. Further, the Answer to Interrogatory no. 4 contains information relating to the efficiency of interoperable pools, which is not material. (Order at p. 6)

Evergreen

559. [REDACTED]

[REDACTED]

[REDACTED]

October 22, 2019 Evergreen/DCLI EMC CUA, CX00003754 at 771, n.1.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]

T [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

560. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]. October 22, 2019 Evergreen/DCLI EMC Amendment No. 1,
CX00003815 at 819.

RESPONSE: Denied. This SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation. Finally, to the extent that a chassis usage agreement exists between [REDACTED], the agreement speaks for itself.

561. [REDACTED]

[REDACTED]
[REDACTED]

[REDACTED] *Id.* at 819, n.1.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

562. [REDACTED]

[REDACTED]

[REDACTED] CX00003647 (Wang Dep. Ex.

14) at 647 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, to the extent that a [REDACTED]

[REDACTED], discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself. Finally to the extent this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

563. [REDACTED]

[REDACTED]

[REDACTED] *Id.*; Wang (Evergreen) Dep.,

CX00000773 at 192:11-21 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, to the extent that a chassis usage agreement was executed between [REDACTED] [REDACTED] are not admissible; and, the agreement speaks for itself. Finally to the extent this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

564. [REDACTED]

[REDACTED]

[REDACTED] CX00003652 (Wang Dep. Ex. 15) at 652-53.

[REDACTED]

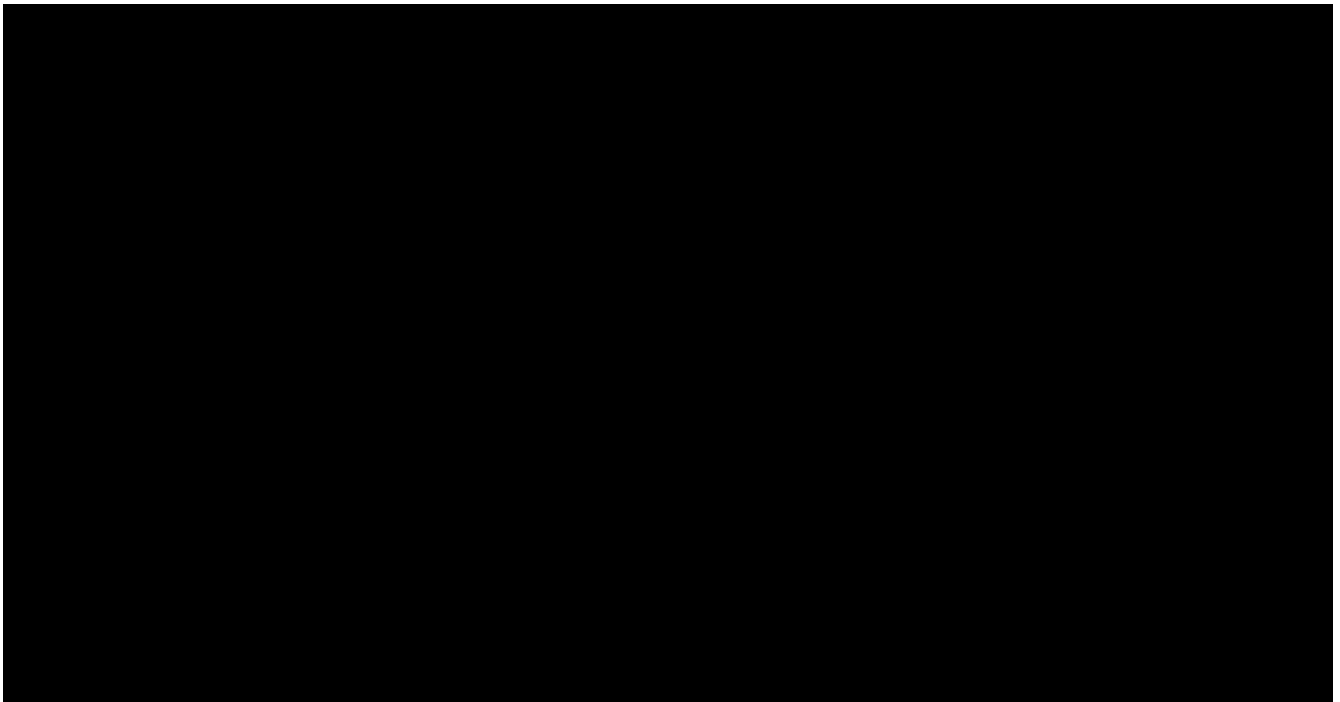
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]



RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, the assertions therein are conclusory and speculative insofar as they not supported by admissible evidence. To the extent that a chassis usage agreement was executed between [REDACTED] and are not admissible; and, the agreement speaks for itself. Finally to the extent this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

565. [REDACTED]

[REDACTED] Wang (Evergreen)

Dep., CX00000773 at 163:10-164:9 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF misrepresents the testimony, which speaks for itself.

Hapag-Lloyd

566. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See*

January 1, 2016 Hapag-Lloyd/TRAC CUA, CX00004115 (Barattini Dep. Ex. 13) at 129, 142.

RESPONSE: Denied. This SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

567. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. *See* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 147:3-7.

RESPONSE: Denied. This SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

568. [REDACTED]

[REDACTED]

[REDACTED] *See* Aug. 16, 2016

TRAC Proposal, CX00004098 (Barattini Dep. Ex. 18) at 098; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 189:5-15 ([REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

569. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *See*

January 1, 2017 Hapag-Lloyd/TRAC Amendment, CX00004089 at 090.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. To the extent that a chassis usage agreement was executed between [REDACTED] [REDACTED], the agreement speaks for itself.

570. [REDACTED]

[REDACTED]

[REDACTED]. *Id.* at 092-93, 097.

RESPONSE: Admitted.

571. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 091-92.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]

[REDACTED] To the extent that a chassis usage agreement was executed between [REDACTED], the agreement speaks for itself.

572. [REDACTED]

[REDACTED]

[REDACTED] *See* Barattini (Hapag-Lloyd) (10/01/2021) Dep, CX00000654, at 194:5-11.

RESPONSE: Denied. This SUMF is not supported by the cited testimony: [REDACTED]

[REDACTED]

[REDACTED]

573. [REDACTED]

[REDACTED]

[REDACTED] August 16, 2016 TRAC Proposal, CX00004098 (Barattini Dep. Ex. 18) at 098; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000654 at 189:23-190:5.

RESPONSE: Denied. This SUMF is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

HMM

574. [REDACTED]

[REDACTED].
CX00005239 (Wilson Dep. Ex. 14) at 262.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]
[REDACTED] As [REDACTED] does not have a contract with the chassis pool operator, only [REDACTED] can withdraw chassis from a pool. In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

575. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. CX00002491 (Compton Dep. Ex. 19) at 492; Compton (HMM) Dep., CX00000207 at 162:17-164:3; *see also* “Chassis Use Agreement” letter (Mar. 19, 2019) CX00004212 at 214 ([REDACTED])
[REDACTED]
[REDACTED].

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

576.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00002491 (Compton Dep. Ex. 19) at 492.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, to the extent that a chassis usage agreement exists between [REDACTED] the agreement speaks for itself.

577.

[REDACTED]

[REDACTED]

[REDACTED] Compton

(HMM) Dep., CX00000207 at 187:20-22.

RESPONSE: Admitted.

578.

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 163:21-164:3.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, this SUMF misrepresents the cited testimony, fails to disclose [REDACTED]

[REDACTED]

[REDACTED]

579.

[REDACTED]

[REDACTED]

[REDACTED] CX00002491 (Compton Dep. Ex. 19) at 492; CX00002433 at 433 (“[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]).

RESPONSE: Admitted.

580. [REDACTED]

[REDACTED]
Compton (HMM) Dep., CX00000207 at 111:18-24.

RESPONSE: Admitted.

Maersk

581. [REDACTED]

[REDACTED] Weisberg (Maersk) Dep.,
CX00000709 at 46:17-21; 97:6-17.

RESPONSE: Admitted.

MSC

582. [REDACTED]

Roveccio (MSC) Dep., CX00000799 at 89:25-90:4.

RESPONSE: Admitted.

583. [REDACTED]

[REDACTED] *Id.* at 188:20-189:7.

RESPONSE: Admitted.

584. In [REDACTED]

[REDACTED] *Id.* at 90:5-10.

RESPONSE: Admitted.

585. [REDACTED] *Id.* at 189:11-22.

RESPONSE: Admitted.

586. [REDACTED] *Id.* at 189:16-22.

RESPONSE: This SUMF misrepresents the cited testimony. [REDACTED]

[REDACTED]

[REDACTED]

587. [REDACTED]

[REDACTED] *Id.* at 189:23-190:8.

RESPONSE: Admitted.

ONE

588. [REDACTED] CX000005382

(Armstrong Dep. Ex. 11) at 382-83; Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 104:3-12.

RESPONSE: Admitted.

589. [REDACTED] Armstrong (ONE) (10/28/2021) Dep., CX00000606 at 155:13-22.

RESPONSE: Admitted.

590. [REDACTED] *Id.*

RESPONSE: Admitted.

591. [REDACTED] *Id.* at 134:14-22.

RESPONSE: Admitted.

592. [REDACTED]

[REDACTED] *Id.* at 104:13-15; CX00005382 (Armstrong Dep. Ex. 11) at 382-83.

RESPONSE: Admitted.

593. [REDACTED]

[REDACTED] Armstrong (ONE) (10/06/2021) Dep., CX00000544 at 132:20-133:1.

RESPONSE: Admitted.

Wan Hai

594. [REDACTED]

[REDACTED]
February 1, 2016 Wan Hai/TRAC CUA, CX00005777 (Chung Dep. Ex. 5) at 787; April 1, 2020 Wan Hai/TRAC CUA, CX00005789 (Chung Dep. Ex. 7) at 798.

RESPONSE: Admitted.

595. [REDACTED]

[REDACTED] July 1, 2021 Wan Hai/TRAC Amendment, CX00005771 (Chung Dep. Ex. 8) at 773; *see also* Chung (Wan Hai) Dep., CX00000304 at 78:13-22 [REDACTED]

RESPONSE: Admitted.

Yang Ming

596. [REDACTED]

[REDACTED] Micena (Yang Ming) Dep. CX00000001 at 186:21-25.

RESPONSE: Admitted.

597. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
CX00005808 (Micena Dep. Ex. 19) at 814, 829; *see also* Micena (Yang Ming) Dep.,
CX00000001 at 289:22-290:4 [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

598. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005808 (Micena Dep. Ex. 19) at 829.

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

599. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 812, 829; *see also* Micena (Yang Ming) Dep. CX00000001 294:19-296:11 ([REDACTED] [REDACTED]).

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

600. [REDACTED]

[REDACTED]

[REDACTED] *See* CX00005808 (Micena Dep. Ex. 19) at 829; *see also* Micena (Yang Ming) Dep. CX00000001 at 297:21-298:9 (“[REDACTED]”).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

601. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See CX00005914 (Micena Dep. Ex. 21) at 916; *see also* Micena (Yang Ming) Dep. CX00000001 312:18-313:3 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order, and is not supported by the cited testimony. Further, this SUMF contains assertions relating to the negotiations of a chassis usage agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

602.

CX00005935 (Micena Dep. Ex. 22) at 936.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as

Further, the agreement

speaks for itself.

603.

See Micena (Yang Ming) Dep. CX00000001 at

303:14-304:5

RESPONSE: Denied. This SUMF contains multiple assertions in violation of ¶15 of the Initial Order. Further, this SUMF contains assertions relating to the negotiations of a chassis usage

agreement between [REDACTED] and, to the extent that an agreement was executed, the discussions and negotiations are merged in the agreement and are not admissible; and, the agreement speaks for itself.

604. [REDACTED]

[REDACTED] Micena (Yang Ming) Dep.
CX00000001 at 343:8-12.

RESPONSE: Admitted.

[REDACTED]
[REDACTED]

January 1, 2019 Yang Ming/TRAC Amendment, CX00005940 at 940.

RESPONSE: Denied. This SUMF misstates the evidence, insofar as [REDACTED]

[REDACTED]
[REDACTED]

[REDACTED] Further, the agreement speaks for itself. In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation.

ZIM

606. [REDACTED] Messing (ZIM) Dep.,

CX00000260 at 141:22-142:8; CX00006040 (Messing Dep. Ex. 18) at 043.

RESPONSE: Admitted.

607.

[REDACTED] Messing (ZIM) Dep., CX00000260 at 143:14-17, 164:7-22; CX00006100 (Messing Dep. Ex. 19) at 104 ([REDACTED] [REDACTED]).

RESPONSE: Admitted.

608.

[REDACTED] Messing (ZIM) Dep., CX00000260 at 141:22-142:10; CX00006040 (Messing Dep. Ex. 18) at 043.

RESPONSE: Admitted.

609.

[REDACTED] Messing (ZIM) Dep., CX00000260 at 164:17-22; CX00006100 (Messing Dep. Ex. 19) at 104 ([REDACTED] [REDACTED]).

RESPONSE: Admitted.

610. Each Respondent ocean carrier responded as follows to IMCC’s Interrogatory No. 4 to identify the “benefits and costs of gray pools and interoperability[:.]”

a.

[REDACTED]
[REDACTED]
[REDACTED] CMA Resps. & Objs. To Interrog. No. 4, CX00002013 (Fentress Dep. Ex. 27) at 018-20; COSCO Resps. & Objs. To Interrog. No. 4, CX00002025 (Houghtalin Dep. Ex. 10) at 030-32; Evergreen Resps. & Objs. To Interrog. No. 4, CX00002038 (Wang Dep. Ex. 21) at 044-46; Hapag-Lloyd Resps. & Objs. To Interrog. No. 4, CX00002052 (Barattini (10/22/2021) Dep. Ex. 28) at 057-58; HMM Resps. & Objs. To Interrog. No. 4,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

j. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of each material fact (Initial Order, ¶15) Further, the foregoing Answers to Interrogatory no. 4 (no. 3, as propounded to Wan Hai) speak for themselves.

611.

CX00005065 (Wilson Dep. Ex. 6) at 075.

Id.

Id.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Respondents furthermore deny this SUMF because it contains assertions regarding the efficiency of interoperable pools and inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

612.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Wilson (CCM) Dep., CX00000490 at 98:5-25; *see also id.* at 99:11-16 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order, and also contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material. (Order, at p. 6) Further the assertions are not supported by the evidence: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

613. [REDACTED]

[REDACTED] CX00004227 (Compton Dep. Ex. 24) at
228-42 ([REDACTED])
[REDACTED]; Compton (HMM) Dep., CX00000207 192:18-24. [REDACTED]

[REDACTED]

Compton (HMM) Dep., CX00006153 at 154:16-25.

RESPONSE: Denied. This SUMF contains assertions regarding the efficiency at rail terminals, specifically with respect to conditions that involve “[REDACTED]” that are not material or relevant. (Order at p. 6)

614. [REDACTED]

[REDACTED] Wilson (CCM) Dep., CX00000490 at 100:6-19 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains assertions regarding [REDACTED]

[REDACTED] that are not material or

relevant. (Order, at p. 6) *See also*, the citation to the Coates/MICP rebuttal report in response to no. 613, *supra*.

615. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00005065 (Wilson Dep. Ex. 6) at 076; Wilson (CCM) Dep., CX00000490 at 117:20-118:12

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

616. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CX00004878 (Wilson Dep. Ex. 6) at 881. [REDACTED] OCEMA and CCM subsequently developed the “Interoperability Matters!” presentation, which describes the benefits of interoperable gray pools to intermodal supply chain stakeholders. CX00002221 (Wilson Dep. Ex. 11). Those benefits include:

- a. All chassis are available within a gray interoperable pool, obviating any requirement to reposition chassis between separate pool locations when an ocean carrier switches chassis providers. *Id.* at 226.
- b. Gray interoperable pools are managed by a neutral party, such as CCM, that does not own chassis itself, thereby fostering an “open competition” environment with “low barriers to entry” for chassis contributors to compete for ocean carrier business, as well as setting standards for chassis quality in the pool. *Id.* at 225.
- c. Gray interoperable pools allow shippers to carry less buffer stock because of more reliable cargo flows with “competitive chassis provision options.” *Id.* at 226.

- d. Gray interoperable pools allow railroads and rail ramp operators to use any chassis on-site, which could result in faster unloading of trains and require fewer chassis on the terminal. *Id.* at 227.
- e. Interoperable gray pools with chassis choice can provide motor carriers “the freedom to use the chassis of his choice on multiple container moves without having to unhook from the chassis,” and given the “broad range of chassis suppliers,” motor carriers can “negotiate better terms and lower rates” in an interoperable pool. *Id.* at 229.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Further,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] See also, responses to nos. 613 and 616, *supra*.

617. [REDACTED]

[REDACTED] the “Interoperability Matters!” presentation [REDACTED] describes “Who Is Impacted by Non-Interoperability,” as shown below.

[REDACTED]

Id. at 223.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, responses to nos. 613, 616 and 617, *supra*.

618. In

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

c. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

866.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Further, denies that the exhibit referenced in this SUMF makes the representations set forth above.

619. [REDACTED]

[REDACTED]

CX00004878 (Wilson Dep. Ex. 6) at 881. [REDACTED]

[REDACTED]

[REDACTED] CX00004919

(Lawrence Dep. Ex. 3). [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 919.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Further,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

620. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at 920.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, response to no. 621, *supra*

621. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. The quotations in this SUMF are not material. (Order, at p. 6)

622. [REDACTED]

[REDACTED] *Id.* at 919; “CCM Pools LLC (CCMP) Operations Manual Version 2.9” (Apr. 1, 2019), CX00002170; *see also supra* at ¶¶ 78-83.

RESPONSE: Denied. The quotations in this SUMF are not material. (Order, at p. 6)

623. The [REDACTED]

[REDACTED]
[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at 878. [REDACTED]

[REDACTED] *Id.* at 879; Wilson (CCM) Dep., CX00000490 at 116:15-20 [REDACTED]

[REDACTED]
[REDACTED]; Jan. 31, 2019 Email from Jeffrey Lawrence (OCEMA), CX00002253 at 253 [REDACTED]
[REDACTED].

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, ocean carrier do not withdraw from CCM pools: [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

624. [REDACTED]

[REDACTED]
[REDACTED]

[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at 879 [REDACTED]

[REDACTED] *Id.*; CX00005065 (Wilson Dep. Ex. 6) at 091.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order.

625. At [REDACTED]

[REDACTED] CX00004878 (Wilson Dep. Ex. 6) at

880; *see also* June 25, 2019 Email from Michael Wilson (CCM), CX00002430 at 430 ([REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order.

626. [REDACTED]

[REDACTED] Coates Dep., CX00000871 at 95:2-19.

RESPONSE: Admitted. Further, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

627. [REDACTED]

[REDACTED]

[REDACTED] CX00004878 at 879-80 (“ [REDACTED]

[REDACTED]

CX00005065 (Wilson Dep. Ex. 6) at 083.

[REDACTED]

[REDACTED] ([REDACTED])

629. [REDACTED]

[REDACTED]

[REDACTED] CX00002259 (Wilson Dep. Ex. 13) at 289. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

630. [REDACTED]

[REDACTED] CX00005118

(Wilson Dep. Ex. 13) at 121; *see also* Wilson (CCM) Dep., CX00000490 at 228:5-230:5

([REDACTED])

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order.

631. [REDACTED]

[REDACTED] CX00002259 (Wilson Dep. Ex. 13) at 036, 274.

RESPONSE: Denied. These quotations do not appear in the referenced documents.

632. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] CX00004872 (Wilson Dep. Ex. 14) at 875-76; Wilson (CCM) Dep., CX00000490 at 235:13-22 [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, ocean carriers do not withdraw from CCM pools:

[REDACTED]
[REDACTED] [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

633. [REDACTED]

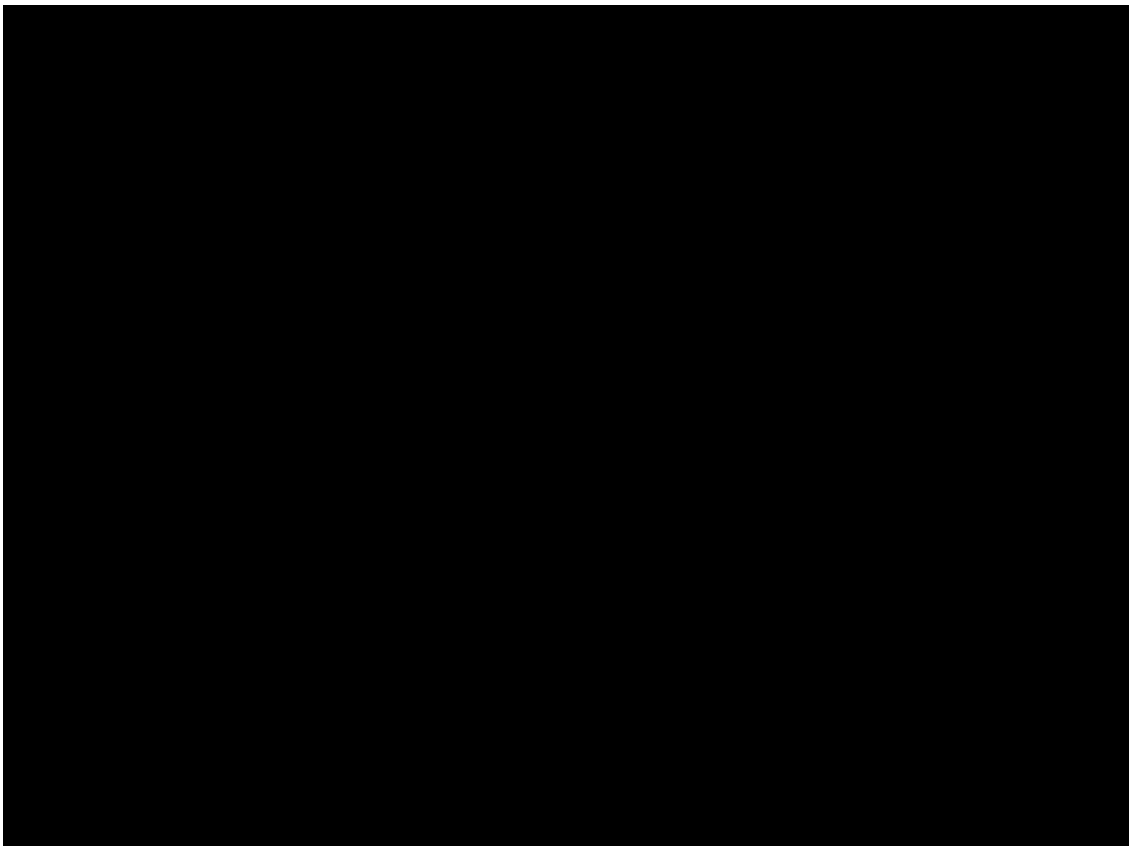
[REDACTED] CX00002259 (Wilson Dep. Ex. 13) at 274.

RESPONSE: Admitted.

634. [REDACTED] CX00002335 at 356. [REDACTED]

[REDACTED] *Id.*: Wilson (CCM) Dep.

[REDACTED]



CX00002335 at 356.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Further, ocean carriers do not withdraw from CCM pools. *See*, Response to no. 633, *supra*

635.



[REDACTED]

Id. at 359.

RESPONSE: Admitted.

636. [REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 129;
see also “2017 chi billing codes.xlsx”, CX00002780; “2020 chi billing codes.xlsx”,
CX00002781.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Respondents furthermore object to IMC’s untimely production of 2017 chi billing codes.xlsx”,

CX00002780; “2020 chi billing codes.xlsx”, CX00002781 which were not produced in response to the subpoena served upon it and prior to the deposition of Mark George.

637. [REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 130.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

638. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶ 136.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

639. [REDACTED]

[REDACTED]

[REDACTED] Lhotak (Reliable) Dep., CX00000477 at 180:7-10; *see also id.* at 181:3 [REDACTED].

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

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[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial Report at ¶ 138. [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) Further,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

643. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶ 139; *see*

also Glenn Fehribach (CPG) Decl. (Apr. 25, 2022) at ¶¶ 4, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643. Respondents further deny the statement as it is a characterization of non-party hearsay.

644. [REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 86; *see also* Glenn Fehribach (CPG) Decl. (Apr. 25, 2022) at ¶¶ 6, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

645. [REDACTED]

[REDACTED]

[REDACTED] “CCE Board

Meeting” presentation (Jan. 28, 2021), CX00002335 at 359.

RESPONSE: Admitted.

646. [REDACTED]

Rodrigue Initial Expert Report, CX00001362 at ¶ 144.

RESPONSE: Admitted.

647. The Memphis region contains several large intermodal rail facilities, including at least two wheeled ramp facilities. *Id.*; *see also* “Intermodal Cartage_Chassis Usage 2019.csv,” CX00004463 ([REDACTED])

[REDACTED]

[REDACTED]

[REDACTED]; CX00004227 (Compton Dep. Ex. 24) at 228 ([REDACTED])

[REDACTED].

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order. Without prejudice, admits that the Memphis region contains two wheeled ramp facilities.

648. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶¶ 145-46; *see also* CX00005566 (Scott George Dep. Ex. 41) ([REDACTED])

[REDACTED]

[REDACTED]); Scott George (TCW) Dep., CX00000640 at 144:16-145:19, 148:10-151:7.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

649. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 148; *see also* Scott George (TCW) Decl. (Apr. 25, 2022) at ¶¶ 4, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

650. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶¶ 148-49; *see also* Scott George (TCW) Decl. (Apr. 25, 2022) at ¶¶ 7, 8.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

651. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 150; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 10, 13.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

652. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* “Chassi Splits.xlsx”, CX00006146.

RESPONSE: Denied. This SUMF contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643. Respondents furthermore object to IMC’s untimely production “Chassi Splits.xlsx”, CX00006146 which were not produced in response to the subpoena served upon Intermodal Cartage and prior to the deposition of Mark George.

653. [REDACTED]

[REDACTED]
Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶ 13.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643.

654. [REDACTED]

[REDACTED]
[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 6-8, 13.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643.

655. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 152; *see also* Mark George (IMC) Decl. (Apr. 25, 2022) at ¶¶ 12, 13.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643.

656. [REDACTED]

[REDACTED] CX00003430 (Wang Dep. Ex. 9) at 434 (“Continued fragmentation is not in the long term best interest of OCEMA and the supply chain as a whole nor to any future consideration of a transaction involving CCM.”

RESPONSE: Denied. This SUMF is conclusory, and contains multiple statements in violation of ¶15 of the Initial Order and assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643.

657. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; *see also* CX00005065 (Wilson Dep. Ex. 6) at 076; Wilson (CCM) Dep., CX00000490 at 200:5-11.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

658. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

659. The [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep.,

CX00000490 at 200:12-201:19 [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

660. [REDACTED]

[REDACTED]

[REDACTED] CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

661. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 75; CX00002221 (Wilson Dep. Ex. 11) at 229-230.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

662. [REDACTED]

[REDACTED] Rodrigue Initial Report at ¶ 75; Wilson (CCM) Dep., CX00000490 at 202:17-20.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

663. [REDACTED]

[REDACTED] CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

664. The “Interoperability Matters! The Interoperable Gray Pool Model: Enhancing Supply Chain Efficiencies” presentation included ocean carriers, BCOs, and motor carriers as entities who experience costs from increased bare repositioning due to a lack of interoperability. CX00002221 (Wilson Dep. Ex. 11) at 223.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

665. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 ¶ 75; Wilson (CCM) Dep., CX00000490 at 202:21-203:10 [REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

666. [REDACTED]

[REDACTED]. CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

667. The “Interoperability Matters! The Interoperable Gray Pool Model: Enhancing Supply Chain Efficiencies” presentation included ocean carriers, BCOs, and motor carriers as entities who experience costs from the need to maintain additional equipment inventory due to a lack of interoperability. CX00002221 (Wilson Dep. Ex. 11) at 223.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

668. [REDACTED]

[REDACTED]. Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 203:11-21.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

669. [REDACTED]

[REDACTED] CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

670. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 201:20-202:5.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

671. [REDACTED]

[REDACTED]

CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

672. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 75; Wilson (CCM) Dep., CX00000490 at 203:22-204:11 ([REDACTED]

[REDACTED].

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

673. [REDACTED]

[REDACTED]

CX00005065 (Wilson Dep. Ex. 6) at 076.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6) *See also*, Response to no. 643

674. [REDACTED]

[REDACTED] CX00005065 (Wilson Dep. Ex. 6) at 076-77.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6

675. [REDACTED]

[REDACTED] Wilson (CCM) Dep., CX00000490 at 145:6-11.

RESPONSE: Denied. This SUMF contains assertions regarding the alleged efficiency of interoperable pools and alleged inefficiency of non-interoperable pools that are not material or relevant. (Order, at p. 6)

676. [REDACTED]

[REDACTED] Rodrigue

Initial Expert Report, CX00001362 at ¶ 106; *see also supra*, Section III.B.

RESPONSE: Denied. This SUMF is conclusory. A more accurate description of the ocean carrier Respondents Choice policies and business models are described in the Coates Declaration, ¶21 a-k; and, the Coates/MICP Report, CX00001524 at 1545—8.

677. [REDACTED]

[REDACTED] Rodrigue Initial Expert Report, CX00001362 at ¶ 108; *see also* Barattini (Hapag-Lloyd) (10/01/2021) Dep., CX00000695 at 150:11-152:8; Micena (Yang Ming) Dep. CX000000001 at 282:5-283:10; Messing (ZIM) Dep., CX00000260 at 159:15-160:12.

RESPONSE: Admitted.

CX00001362 at ¶ 108.

RESPONSE: Admitted.

A [REDACTED]

CX00000448 at 90:9-92:21

RESPONSE: Admitted.

[REDACTED]

[REDACTED] Coates Dep., CX00000871 at 265:20-

266:4.

RESPONSE: Denied. This is a conclusory and incomplete statement of Mr. Coates' opinions and testimony on this complex issue: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

A horizontal bar chart consisting of 20 black bars of varying lengths. The bars are arranged in a single column. The lengths of the bars vary significantly, with the longest bar being the 10th bar from the top, and the shortest bars being the 1st and 20th bars. The bars are all solid black and have no text or labels associated with them.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] (Coates/MICP Rebuttal Report, CX00001688, at 1693-4)

681. Chassis supplied by IEPs on a daily usage basis is a relevant product market because that is the basis by which both ocean carriers and motor carriers (and their customers) obtain chassis from chassis pools. Chassis at daily usage prices are obtained either through contracts with IEPs or at the IEPs posted daily prices. *See supra*, Sections IV.A., IV.B., IV.D. **RESPONSE:** Denied. IMCC attempt to present its expert *opinion* as fact here, citing four Sections of this as underpinning this assertion. Furthermore, the relevant product market is in dispute. (Reitzes Declaration, APP2226). To the extent IMCC intends this fact to be limited to its second statement, Respondents admit that chassis are generally secured through contracts or through posted daily rates.

682. [REDACTED]

[REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 40.

RESPONSE: Admitted.

683. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶¶ 34-37.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. *See*, Rebuttal Report of Dr. James Reitzes,

CX00001625, ¶98-104. Further: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

684. [REDACTED]

[REDACTED] See Coates Initial Expert Report, CX00001524 at 535; Rodrigue Initial Expert Report, CX00001362 at ¶ 31; *see also supra*, Section IV.A.

RESPONSE: Admitted.

685. [REDACTED]

[REDACTED]

[REDACTED] See *supra*, Section IV.A.

RESPONSE: Admitted.

686. [REDACTED]

[REDACTED]

[REDACTED] See, e.g., Fehribach (CPG) Dep., CX00000329

at 62:3- 63:3 ([REDACTED])

[REDACTED]; CX00002759 (Fehribach Dep. Ex. 7); CX00003208 (Giltz Dep. Ex. 8) ([REDACTED])

[REDACTED], Giltz (Evans Delivery) Dep., CX00000186 at

67:14-17; Lhotak (Reliable) Dep., CX00000477 at 39:14-40:13 ([REDACTED])

[REDACTED]; Evergreen Resps. & Objs. To Interrog. No. 6 (Wang Dep.

Ex. 21), CX00002038 at 047-48; *see also* Langenfeld Initial Expert Report, CX00001266 at ¶¶

41, 51.

RESPONSE: Admitted.

687. [REDACTED]

[REDACTED]

[REDACTED] Langenfeld

Initial Expert Report, CX00001266 at ¶ 41.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

688. [REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶¶ 62-67.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

689. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶ 44.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr.

Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*)

690. [REDACTED]

[REDACTED]

Langenfeld Initial Expert Report, CX00001266 at ¶ 55; Coates Initial Expert Report, CX00001524 at 542.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*)

691. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 46.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*)

692. [REDACTED]

[REDACTED]. *Id.* at ¶ 47; Coates Initial Expert Report, CX00001524 at 554.

RESPONSE: Admitted.

693. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Langenfeld Initial
Expert Report, CX00001266 at ¶ 48.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

694. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 49; Giltz (Evans Delivery) Dep., CX00000186 at 160:20-162:20; Scott George (TCW) Dep., CX00000640 at 152:7-154:8.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

695. [REDACTED]

[REDACTED] Coates Initial Expert Report, CX00001524 at 538.

RESPONSE: Admitted.

696. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

Id.; see also Coates Dep., CX00000871 at 172:17-23 [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Admitted.

697. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 55.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

698. [REDACTED]

[REDACTED] *Id.* at ¶ 49; Manning Dep., CX00000247 at 157:6-159:21, 166:7-22; Giltz (Evans Delivery) Dep., CX00000186 at 161:3-16.

RESPONSE: Denied. The referenced testimony contains general assertions regarding the efficiency of chassis operations at railyards which are not material. (Order, at p. 6) Furthermore,

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

699. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶
49.

RESPONSE: Denied. The referenced testimony contains general assertions regarding the efficiency of chassis operations at railyards which are not material. (Order, at p. 6) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

700. [REDACTED]

[REDACTED]. *Id.* at ¶ 50; CX00002586 (Fentress Dep. Ex. 16) at 589.

RESPONSE: Admitted.

701. [REDACTED]

[REDACTED]

Langenfeld Initial Expert Report, CX00001266 at ¶ 50; Manning Dep., CX00000247 at 159:14-21, 163:10-25.

RESPONSE: Denied. Whether a motor carrier can be compensated for the use of its own chassis in a CH move will depend on the agreement between the motor carrier and the ocean

carrier. However, in a CH move, since the ocean carrier arranges for the chassis and pays the IEP for its use, there is no reason why a motor carrier would use its own chassis to transport a container moving on a CH basis.

702. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 51; Scott George (TCW) Dep., CX00000640 at 152:7-153:2.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*) Furthermore, [REDACTED]

[REDACTED]

[REDACTED]

703. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 52; Declaration of Randy Clifford (Ventura), CX00001706 at ¶¶ 7-9.

RESPONSE: Deny that this SUMF is material, but admit that motor carriers engaged in the transport of heavy or specialized containers purchase or lease specialty chassis. This SUMF is not material because a motor carrier, such as Ventura Transport, is not engaged in the business of transporting intermodal containers. As to paragraph 52 of Dr. Langenfeld's Report, Respondents' expert has opined that by Dr. Langenfeld's opinions are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

704. [REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 52.

RESPONSE: Admitted.

705. [REDACTED]
[REDACTED] *Id.*;
Declaration of Randy Clifford (Ventura), CX00001706 at ¶ 8.

RESPONSE: Deny that this SUMF is material because it does not involve any allegation made by IMCC in this proceeding; but admit that specialty chassis are not subject to the benefits of a gray pools.

706. [REDACTED]
[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 52.

RESPONSE: Denied. This generalization is not adequately supported by testimony from one regional motor carrier and “interviews” that were conducted by IMCC’s witnesses off of the record in the absence of Respondents counsel. Furthermore, this statement is not relevant or material because it does not implicate any allegations made by IMCC in this proceeding. Respondents’ expert has opined that by Dr. Langenfeld’s opinions are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*)

707. [REDACTED]
[REDACTED]
[REDACTED] *Id.* at ¶ 53; Scott George (TCW) Dep., CX00000640 at 152:7-153:2; Lawrence (OCEMA) Dep., CX00000448 at 141:21-144:16.

RESPONSE: Denied. This statement is not relevant or material because it does not implicate any allegations made by IMCC in this proceeding.

708. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at ¶ 53.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

709. [REDACTED]

[REDACTED] *Id.* at ¶ 54; *see also* Giltz (Evans Delivery) Dep., CX00000186 at 163:23-163:10; Lhotak (CPG) Dep., CX00000477 at 40:22-41:5 [REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This generalization is not adequately supported by the cited testimony from two motor carriers. Furthermore, the testimony cited does not support the statement because it is clear that [REDACTED] was responding to a question about [REDACTED] and not [REDACTED]. (Lhotak Dep., p. 40, l. 2 – p. 41, l. 22, APP2126-27). As to paragraph 57 of Dr. Langenfeld's Report, Respondents' expert has opined that by Dr. Langenfeld's opinions are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*) .

710. [REDACTED]

[REDACTED] Langenfeld Initial Expert Report, CX00001266 at

¶ 54; Giltz (Evans Delivery) Dep., CX00000186 at 125:16-128:15.

RESPONSE: Admitted.

711. [REDACTED]

[REDACTED]

[REDACTED] Langenfeld Initial Expert Report,
CX00001266 at ¶ 57. [REDACTED]

[REDACTED]

CX00005367 at 367.

RESPONSE: Denied. As to paragraph 57 of Dr. Langenfeld's Report, Respondents' expert has opined that Dr. Langenfeld's opinions are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*) Consistent with [REDACTED], the question of whether a motor carrier procures his or her own chassis is determined by which alternative is more attractive: daily chassis rentals or an investment in self-supplying a chassis.

712. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Langenfeld
Initial Report, CX00001266 at ¶ 57 n.83.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr.

Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

713. The ocean carriers' tariffs distinguish between: (1) ocean carrier transportation provided under through or "store-door" rates that included chassis and for which ocean carriers are billed at IEPs' CH rates, and (2) ocean carrier transportation provided under port-to-port tariffs or inland tariffs terminated at intermodal rail terminals which require motor carriers and/or their customers to obtain chassis at IEPs' MH rates. Joint Stipulations at ¶¶ 30, 33, 47, 49, 63, 65, 77, 79, 92, 94, 107, 109, 122, 124, 138, 140, 152, 154, 168-69, 181, 183.

RESPONSE: Admitted.

714. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 62.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

715. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 62.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*).

716. [REDACTED]

[REDACTED]
Langenfeld Initial Expert Report, CX00001266 at ¶ 63.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

717. [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]. *Id.*

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶¶98-104. (*See also*, Response to no. 684, *supra*)

718. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Denied. This statement is denied because it makes a statement that is not conclusive but "may" be the case. As such, this is inappropriately characterized by IMCC as a "fact" because it is also true that [REDACTED] *may not* [REDACTED].

719. [REDACTED]

[REDACTED] *Id.*; Chung (Wan Hai) Dep., CX00000304 at 40:22-41:5; Houghtalin (COSCO) Dep., CX00000337 at 88:2-89:3; Micena (Yang Ming) Dep. CX000000001 at 77:17-24.

RESPONSE: Admitted.

720. [REDACTED]

[REDACTED]. Langenfeld Initial Expert Report, CX00001266 at ¶ 63.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*)

721. [REDACTED]

[REDACTED] *Id.*

at ¶ 63, Ex. 4.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*) Further, this statement is denied because it suggests that NACPC has not raised its rates which is demonstrably false. (*See* NACPC Pricing at <https://web.archive.org/web/20170316095204/https://www.nacpc.org/pricing/> as compared to NACPC's present pricing available at [nacpc.org/pricing](https://www.nacpc.org/pricing/)). This statement is also denied because it ignores other possible factors for chassis price reductions such as efficiencies in utilization, aging equipment, and increased volume commitments.

722. [REDACTED]

[REDACTED] *Id.* at ¶ 63.

RESPONSE: Denied. Respondents' expert has opined that these opinions advanced by Dr. Langenfeld are wrong for multiple reasons. See, Rebuttal Report of Dr. James Reitzes, CX00001625, ¶98-104. (*See also*, Response to no. 684, *supra*)

723. Container drayage distance rarely exceeds 500 miles, which is the average distance for all truck shipments in the United States. CX00001920 at 920, *Average Length of*

Haul, Domestic Passenger and Freight Transport, United States, 1960-2016, THE GEOGRAPHY OF TRANSPORT SYSTEMS, <https://transportgeography.org/contents/chapter5/transportation-modes-modal-competition-modal-shift/length-haul-passengers-united-states/> (last visited Feb. 28, 2022).

RESPONSE: Admitted.

724. In 2017, 39% of the value and 65% of the weight of all goods carried by trucks in the U.S. travelled fewer than 50 miles. *Id.* at 921.

RESPONSE: Admitted.

725. Drayage moves take place on even shorter distances than the national truck haul average, limiting the distance for which a chassis is used and returned. Evidence from Atlanta shows a notable decline in the average drayage distance from 216 miles in 2018 to 155 miles in 2019. CX00001926 at 928, Ari Ashe, *US drayage rates rise as length of haul shrinks*, THE JOURNAL OF COMMERCE (July 19, 2019), https://www.joc.com/trucking-logistics/drayage/us-drayage-rates-rise-length-haul-shrinks_20190719.html.

RESPONSE: Admitted.

726. For the Los Angeles/Long Beach drayage market, about 59% of trips were for less than 40 miles in 2013. CX00001886 at 894, CALSTART, *Key Performance Parameters for Drayage Trucks Operating at the Ports of Los Angeles and Long Beach* (Nov 15, 2013), https://calstart.org/wp-content/uploads/2018/10/I-710-Project_Key-Performance-Parameters-for-Drayage-Trucks.pdf.

RESPONSE: Admitted.

727. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Rodrigue

Initial Expert Report, CX00001362 at ¶165.

RESPONSE: Admitted.

728. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

729. [REDACTED]

[REDACTED] *Id.*

RESPONSE: Admitted.

730. [REDACTED]

[REDACTED] According to Respondent CCM, “The Pools were developed large enough to try and encompass enough geography to encircle the migration of chassis between locations. Costs vary by region of the country, so the Pools’ geography was also considered to be small enough to help differentiate regional costs.” *Id.* at ¶ 166; *see also* CX00001923 at 923, CCM, *Frequently Asked Questions – General Subject Matters* (Sept. 22, 2017),

<https://www.ccmpool.com/UploadedDocuments/Frequently-Asked-Questions-9-22-17.pdf>.

RESPONSE: Admitted.

731. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RESPONSE: Denied. This SUMF does not contain a concise statement of material fact in violation of Initial Order, ¶15. In addition, this SUMF concerns locations outside of the geographic scope of discovery that was conducted in this proceeding, so the information referenced therein is not admissible at this stage of the litigation. [REDACTED]

[REDACTED]

[REDACTED]

732. [REDACTED]

[REDACTED]

[REDACTED] Rodrigue Initial

Expert Report, CX00001362 at ¶¶ 170-76.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Furthermore, Dr. Rodrigue’s analysis is flawed. (Reitzes Rebuttal Report ¶123, 124, CCX00001625).

733. In particular:

- The region surrounding the port facilities at Los Angeles / Long Beach is a relevant geographic market. *Id.* at ¶¶ 170, 179.
- The region surrounding the intermodal rail facilities of Chicago, Illinois is a relevant geographic market. *Id.* at ¶¶ 171-72, 179.
- The region surrounding the intermodal rail facilities of Memphis, Tennessee is a relevant geographic market. *Id.* at ¶¶ 173-74; 179.
- The region surrounding the port facilities at Savannah, Georgia is a relevant geographic market. *Id.* at ¶¶ 175-76, 179.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. Furthermore, Dr.

Rodrigue’s analysis is flawed. (Rebuttal Report of Dr. James Reitzes 123, 124, CCX00001625).

734. [REDACTED]

[REDACTED] *Id.* at ¶ 179.

RESPONSE: Denied. “[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

735. [REDACTED]

[REDACTED]

[REDACTED]. Rodrigue Initial Expert Report,
CX00001362 at ¶ 112.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

736. [REDACTED]

[REDACTED]

Id. at ¶ 113.

RESPONSE: Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

737. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] *Id.* at ¶¶ 114-15.

RESPONSE: Denied. *Id.* at 1544-5

738. The FMC-assembled Memphis Supply Chain Innovation Team submitted a white paper titled “A Single Gray Chassis Pool Fosters Fluid Commerce and Improves Supply Chain Velocity” in 2019, in which it concluded that “the answer to reducing gridlock and improving supply chain velocity in the Mid-South is a single gray chassis pool in Memphis offering greater supply, quality, fair access, and accountability. A gray pool allows interoperability of all chassis, which is the exchange of any [] chassis for usage.” CX00006417 at 150 (emphasis in original).

RESPONSE: Admit that the white paper referenced in this SUMF was prepared and that the

quotation from same is accurate.

Respectfully submitted,

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May 27, 2022

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